Introductory Course to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction



UN
Office of Legal Affairs
Division for Ocean Affairs and the Law of the Sea

UN environment programme

InforMEA
UNITED NATIONS INFORMATION PORTAL ON MULTILATERAL ENVIRONMENTAL AGREEMENTS

This course was developed in cooperation with the Division for Ocean Affairs and the Law of the Sea, UN Office of Legal Affairs, on the basis of material developed by that Division.

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Table of Abbreviations

ABMTs	Area-based management tools
ABNJ	Areas beyond national jurisdiction
ABS	Access and Benefit-Sharing
BBNJ	Marine biological diversity of areas beyond national jurisdiction
BBNJ Agreement	Agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction
CBD	Convention on Biological Diversity
CB&TMT	Capacity-building and the transfer of marine technology
CHM	Clearing-House Mechanism
CITES	Convention on International Trade in Endangered Species of wild Fauna and Flora
COP	Conference of the Parties
CMS	Convention on Migratory Species of Wild Animals
DOALOS	Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs of the United Nations
DSI	Digital sequence information
EEZ	Exclusive economic zone
EIA	Environmental impact assessment
FAO	Food and Agriculture Organization of the United Nations
IOC	Intergovernmental Oceanographic Commission
ICP	United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea
IFBs	Legal instruments and frameworks, and global, regional, subregional and sectoral bodies
IMO	International Maritime Organization
IPLCs	Indigenous Peoples and local communities
ISA	International Seabed Authority
ITLOS	International Tribunal for the Law of the Sea
MGRs	Marine genetic resources
MPAs	Marine protected areas
MSR	Marine scientific research
Part XI Agreement	Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982
REIO	Regional Economic Integration Organization
RFMOs	Regional Fisheries Management Organizations
RFMO/A's	Regional Fisheries Management Organizations and Arrangements
SEA	Strategic environmental assessment
STB	Scientific and Technical Body
TMT	Transfer of marine technology
UNCLOS	United Nations Convention on the Law of the Sea
UNESCO	United Nations Educational, Scientific and Cultural Organization
UNFCCC	United Nations Framework Convention on Climate Change

UNFSA	Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks
UN General Assembly	United Nations General Assembly

Lesson 1

Introduction

1.1 Learning objectives

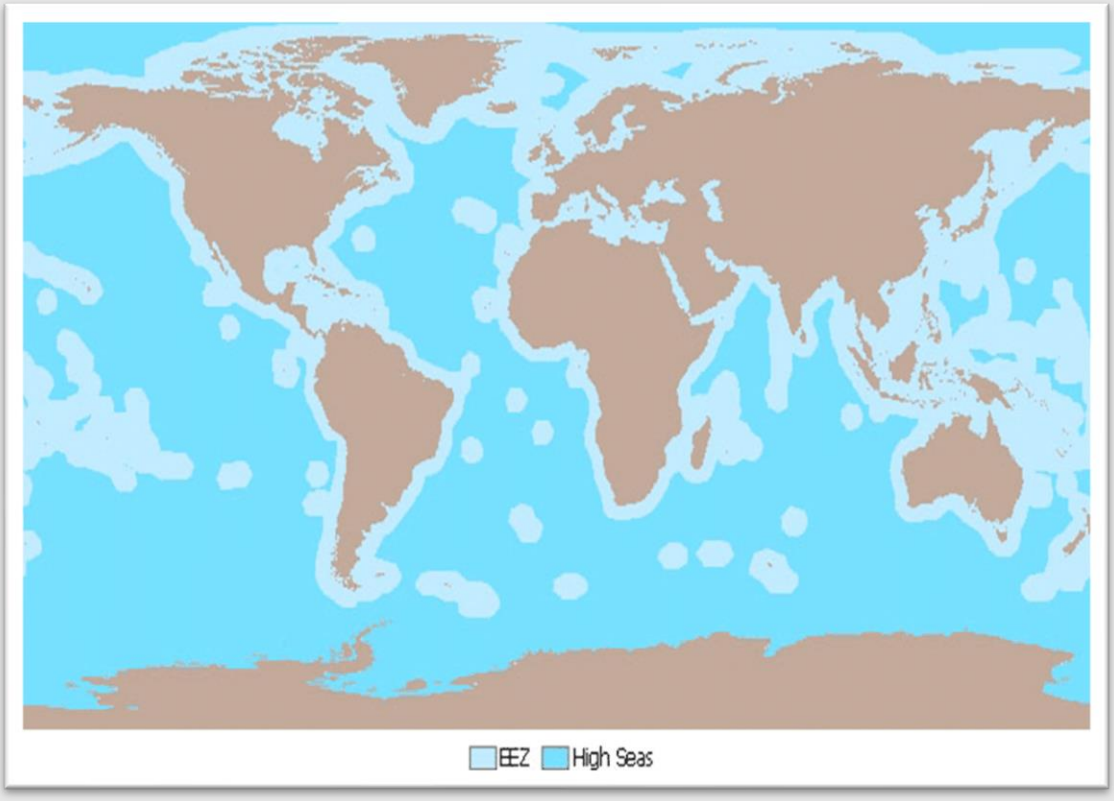
At the end of this module, you will be able to:

(1) Define areas beyond national jurisdiction (ABNJ).
(2) Describe the milestones in the process that led to the adoption of the Agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (BBNJ Agreement).

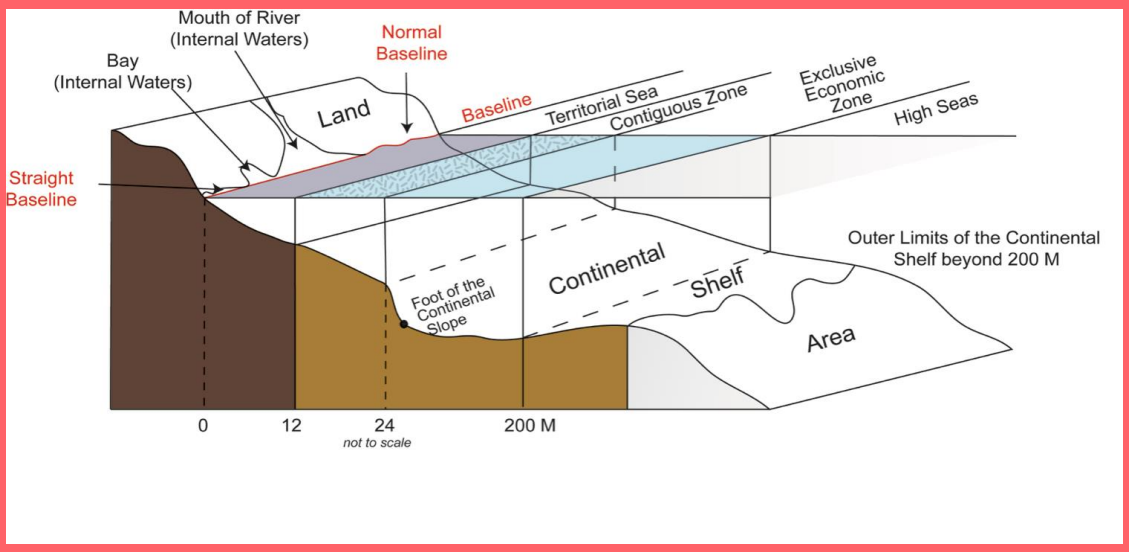
1.2 Areas beyond national jurisdiction

Did you know?

Nearly two-thirds of the oceans are areas beyond national jurisdiction. But, what are areas beyond national jurisdiction (ABNJ) under the United Nations Convention on the Law of the Sea (UNCLOS)?



Hypothetical overview of repartition of oceans among high seas areas and exclusive economic zones (EEZ) if all EEZ had been declared up to 200 nautical miles.



High seas: All parts of the sea that are not included in the EEZ, territorial sea, internal waters, or archipelagic waters of an archipelagic State.

Area: The seabed and ocean floor and subsoil thereof beyond the limits of national jurisdiction

Threats to BBNJ and the relevant governance framework

It has been recognized that many anthropogenic pressures, cumulatively, put marine biological diversity of areas beyond national jurisdiction (BBNJ) at risk, including overfishing and destructive fishing practices, climate change and ocean acidification and pollution from various sources. Yet, BBNJ provides us with many goods and services, from the fish we eat to the regulation of the global climate cycle.

Up to now several global and regional organizations had competence in ABNJ for a number of sectoral activities, but there was no overall cross-sectoral management mechanism. Sectoral organizations with a competence in ABNJ include the International Seabed Authority (ISA), the Food and Agriculture Organization of the United Nations (FAO), the International Maritime Organization (IMO) and the Intergovernmental Oceanographic Commission (IOC) of the United Nations Educational, Scientific and Cultural Organization (UNESCO). The General Assembly of the United Nations (UN General Assembly) provides global policy guidance on ocean affairs and the law of the sea, including in relation to ABNJ, but it is not a management body.

Different legal regimes apply in ABNJ, namely the freedom of the high seas in the high seas and the common heritage of humankind in relation to the Area and its resources.

BBNJ Agreement Timeline

Cognizant of this situation and the need to enhance the conservation and sustainable use of BBNJ, the UN General Assembly launched discussions in 2004 to study various aspects of the issue, including the legal, environmental, technological and socio-economic aspects, as well as ways to strengthen international cooperation and coordination.

The adoption of the BBNJ Agreement is the outcome of a long, iterative process that took place in various formats over nearly two decades. Discussions were extremely complex but a shared sense of responsibility to improve the health and resilience of the ocean, and to ensure that its conservation and sustainable use benefit all humanity, led to this significant achievement.

- **2004: ICP meeting on new and sustainable uses of the oceans**
  The UN General Assembly first considered the issues relating to marine biological diversity of ABNJ through the United Nations Open-ended Informal Consultative Process on Oceans and the Law of the Sea (ICP).

  The fifth meeting of the ICP focused its discussions, at the request of the UN General Assembly, on the topic: "*New and sustainable uses of the oceans, including the conservation and management of the biological diversity of the seabed in areas beyond national jurisdiction*".

- **Establishment of the Ad Hoc Open-ended Informal Working Group**

  The UN General Assembly, taking into account the consensual elements adopted by the meeting of the ICP, proceeded with the establishment of an "Ad Hoc Open-ended Informal Working Group to study issues relating to the conservation and sustainable use of marine biological diversity beyond areas of national jurisdiction" (A/RES/59/24, para. 73).

  From 2006 to 2011 the Ad Hoc Open-ended Informal Working Group held several meetings. In 2010, it was, for the first time, mandated to make recommendations to the UN General Assembly.

- **2011: A package of issues is agreed upon**

  2011 marked a turning point in the life of the Ad Hoc Open-ended Informal Working Group with delegations deciding to establish a process, within the Working Group, that would allow them to focus on a package of issues.

  On the basis of the recommendations of the Working Group at that meeting, the UN General Assembly decided to establish such a process with a view to ensuring that the legal framework for the conservation and sustainable use of marine biodiversity in ABNJ effectively addresses those issues by identifying gaps and ways forward, including through the implementation of existing instruments and the possible development of a multilateral agreement under UNCLOS.

  It decided that this process should address the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction, in particular, together and as a whole, marine genetic resources, including questions on the sharing of benefits, measures such as area-based management tools, including marine protected areas, environmental impact assessments, and capacity-building and the transfer of marine technology.

It also decided that this process would take place: (i) in the existing Working Group; and (ii) in the format of intersessional workshops aimed at improving understanding of the issues and clarifying key questions as an input to the work of the Working Group.

- **2012: Rio+20**

  In 2012, the convening of the Rio+20 Conference provided an additional impetus to the work of the Ad Hoc Open-ended Informal Working Group, with heads of States and Governments:
  - recognizing the importance of the conservation and sustainable use of marine biodiversity beyond areas of national jurisdiction;
  - noting the ongoing work under the BBNJ Working Group; and
  - committing, building on the work of the Working Group and before the end of the sixty-ninth session of the UN General Assembly, to address, on an urgent basis, the issue of the conservation and sustainable use of marine biodiversity of areas beyond national jurisdiction, including by taking a decision on the development of an international instrument under UNCLOS.

- **2015: Decision of the UN General Assembly to Develop an International Legal Binding Instrument under UNCLOS (Resolution 69/292)**

  2015 marked the completion of the work of the Ad Hoc Open-ended Informal Working Group, with the adoption of its recommendations to the UN General Assembly.

  On the basis of those recommendations, the UN General Assembly adopted resolution 69/292 of 19 June 2015, by which it decided to develop an international legally binding instrument under UNCLOS on BBNJ, and established a Preparatory Committee to make substantive recommendations on the elements of a draft text.

  The Preparatory Committee met over four sessions in 2016 and 2017. In July 2017, it adopted its report, including recommendations to the UN General Assembly.

  In its report, the Committee recommended to the General Assembly:
  - Elements of a draft text of an international legally binding agreement;
  - That the UN General Assembly take a decision on the convening of an intergovernmental conference to consider the Committee's recommendations on the elements and to elaborate the text of an international legally binding instrument under UNCLOS.

- **2017: Decision of the UN General Assembly to convene the BBNJ Intergovernmental Conference (Resolution 72/249)**

  On 24 December 2017, the UN General Assembly adopted Resolution 72/249, in which, taking note of the report of the Preparatory Committee established by resolution 69/292, it decided to convene an Intergovernmental Conference to:
  - Consider the recommendations of the Preparatory Committee on the elements of a draft text.
  - Elaborate the text of an international legally binding instrument under UNCLOS on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

In resolution 72/249, the UN General Assembly also decided on a number of substantive and procedural issues, including that:

- The negotiations would address the topics identified in the package agreed in 2011, namely, the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, in particular, together and as a whole, marine genetic resources, including questions on the sharing of benefits, measures such as area-based management tools, including marine protected areas, environmental impact assessments and capacity-building and the transfer of marine technology;
- The work and results of the Conference should be fully consistent with the provisions of UNCLOS;
- The process and its result should not undermine existing relevant legal instruments and frameworks and relevant global, regional and sectoral bodies (IFBs);
- Neither participation in the negotiations nor their outcome may affect the legal status of non-parties to UNCLOS or any other related agreements or the legal status of parties to UNCLOS or any other related agreements.

- **BBNJ Intergovernmental Conference**

  In accordance with resolution 72/249, the Conference held a three-day organizational meeting in New York, from 16 to 18 April 2018, to discuss organizational matters, including the process for the preparation of the zero draft of the instrument.

  Between 2018 and 2023 the Intergovernmental Conference held five sessions:

  - First session: 4 - 17 September 2018.
  - Second session: 25 March – 5 April 2019.
  - Third session: 19 – 30 August 2019.
  - Fourth session: 7 – 18 March 2022.
  - Fifth session: 15 – 26 August 2022.

  On the last day of the fifth session, the Conference, in considering the way forward, decided to suspend that session and resume it at a later date. The resumed fifth session of the Intergovernmental Conference met from 20 February to 3 March 2023. At the end of that meeting, the Conference decided to further resume at a later date with a view to adopting the agreement.

- **Adoption of the BBNJ Agreement**

  Pursuant to UN General Assembly resolution 77/556 of 18 April 2023, the further resumed fifth session of the Intergovernmental Conference was held at UN Headquarters in New York on 19 and 20 June 2023. On 19 June 2023, the Conference adopted, by consensus, the BBNJ Agreement. The Conference was closed on 20 June 2023.

- **The way forward: Resolution 77/321 of the UN General Assembly**

On 1 August 2023, the UN General Assembly adopted resolution 77/321, in which it welcomed the adoption of the BBNJ Agreement and approved the assumption by the Secretary-General of the functions assigned to him under the Agreement, including the depositary functions and the performance, through the Division for Ocean Affairs and the Law of the Sea (DOALOS) of the UN Office of Legal Affairs, of the secretariat functions under the Agreement until such time as the secretariat to be established under the Agreement commences its functions.

In resolution 77/321, the UN General Assembly also requested DOALOS to undertake activities to promote a better understanding of the Agreement and to prepare for its entry into force.
On 20 September 2023, the BBNJ Agreement was opened for signature at UN Headquarters in New York for two years, until 20 September 2025.

1.3 Recap

What are Areas Beyond National Jurisdiction (ABNJ)?

- **The high seas -** all parts of the sea that are not included in the EEZ, territorial sea, internal waters, or archipelagic waters of an archipelagic State.
- **The Area** - the seabed and ocean floor and subsoil thereof beyond the limits of national jurisdiction.

Threats to BBNJ and the relevant governance framework

- Pressures from overfishing and destructive fishing practices, climate change and ocean acidification and pollution of the marine environment from various sources.
- Importance of BBNJ as a provider of many ecosystem services.
- Several sectoral organizations have competence in ABNJ.
- No cross-sectoral management body.
- Different legal regimes apply to the high seas and to the Area.

BBNJ Agreement Timeline

- In 2004, the UN General Assembly established an Ad Hoc Open-ended Informal Working Group to study issues relating to BBNJ.
- From 2006-2015 the Ad Hoc Open-ended Informal Working Group carried out its work including by focusing on a "package of issues" (marine genetic resources, including questions on the sharing of benefits; measures such as area-based management tools, including marine protected areas; environmental impact assessments; and capacity-building and the transfer of marine technology).
- In 2015, the UN General Assembly, taking note of the recommendations of the Ad Hoc Open-ended Informal Working Group, decided to develop an international legally binding instrument under UNCLOS on BBNJ, and established a Preparatory Committee to make recommendations on the elements of a draft text
- In 2017, the UN General Assembly, taking note of the report of the Preparatory Committee, decided to convene an International Conference, under the auspices of the United Nations, to elaborate the text of an international legally binding instrument under UNCLOS on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

- From 2018 to 2023 the Intergovernmental Conference held five sessions.
- On 19 June 2023, the Conference completed its work by the adoption of the BBNJ Agreement.

Lesson 2

The legal framework

2.1 Learning objectives

By the end of this module, you will be able to:

- Describe the international legal framework for ABNJ.
- Understand the legal and policy context surrounding the adoption of the BBNJ Agreement.

2.2 UNCLOS – General Aspects

History of UNCLOS

- **1958: First United Nations Conference on the Law of the Sea**
  - Resulted in the adoption of four separate conventions on: the Territorial Sea and the Contiguous Zone; the High Seas; Fishing and Conservation of the Living Resources of the High Seas; and the Continental Shelf.
- **1960: Second United Nations Conference on the Law of the Sea**
  - Was convened to address the issue of the breadth of the territorial sea, but failed to reach agreement on a compromise formula providing for a six-mile territorial sea and a six-mile fishery zone.
- **1970: UN General Assembly Declaration of Principles (Resolution 2749(XXV))**
  - "The sea-bed and ocean floor, and the subsoil thereof, beyond the limits of national jurisdiction (hereinafter referred to as the "Area"), as well as the resources of the Area, are the common heritage of mankind".
  - The Area shall not be subject to national appropriation, nor be explored or exploited except in accordance with an international regime to be established and be used exclusively for peaceful purposes.
- **1973-1982: Third United Nations Conference on the Law of the Sea – UNCLOS adopted and opened for signature on 10th December 1982**

Key features of UNCLOS

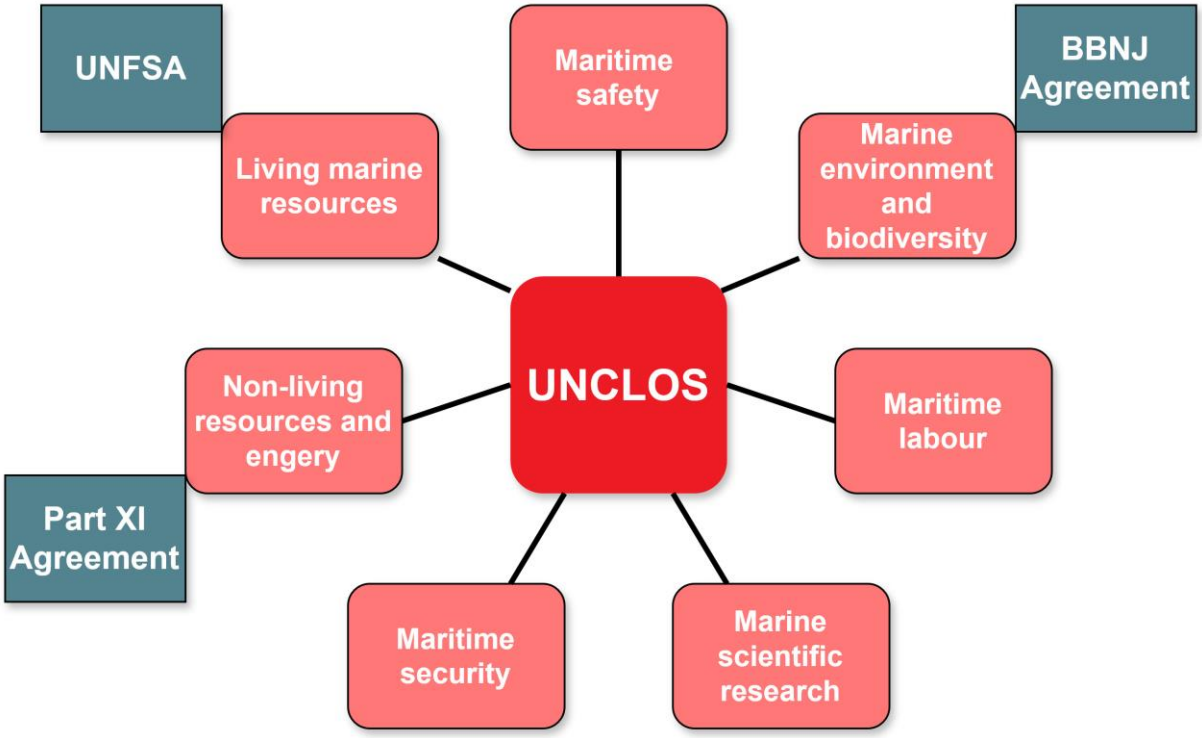
- Entered into force on 16 November 1994
- 320 articles, 9 annexes
- Constitution for the ocean – sets out the legal framework within which all activities in the oceans and seas must be carried out
- UNCLOS as a "package" – incorporates agreed compromises and balances competing interests, producing an intricately balanced text to provide a basis for universal adoption
- Ensures balance between the different interests of States (for example, the rights of States to use the ocean and its resources, and the duty to protect and preserve the marine environment)
- Imposes a duty on States to cooperate at global, regional and sub-regional levels - international cooperation is one of the cornerstones of UNCLOS.

The "UNCLOS family" – Implementing Agreements

(1) Agreement relating to the Implementation of Part XI of UNCLOS (Part XI Agreement; adopted in 1994)
(2) Agreement for the Implementation of the Provisions of UNCLOS relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks (UNFSA, adopted in 1995)
(3) Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ Agreement, adopted in 2023)

UNCLOS as a framework Convention

UNCLOS addresses a wide range of issues and its provisions have been further elaborated upon by sector-specific instruments.



Dispute settlement under UNCLOS

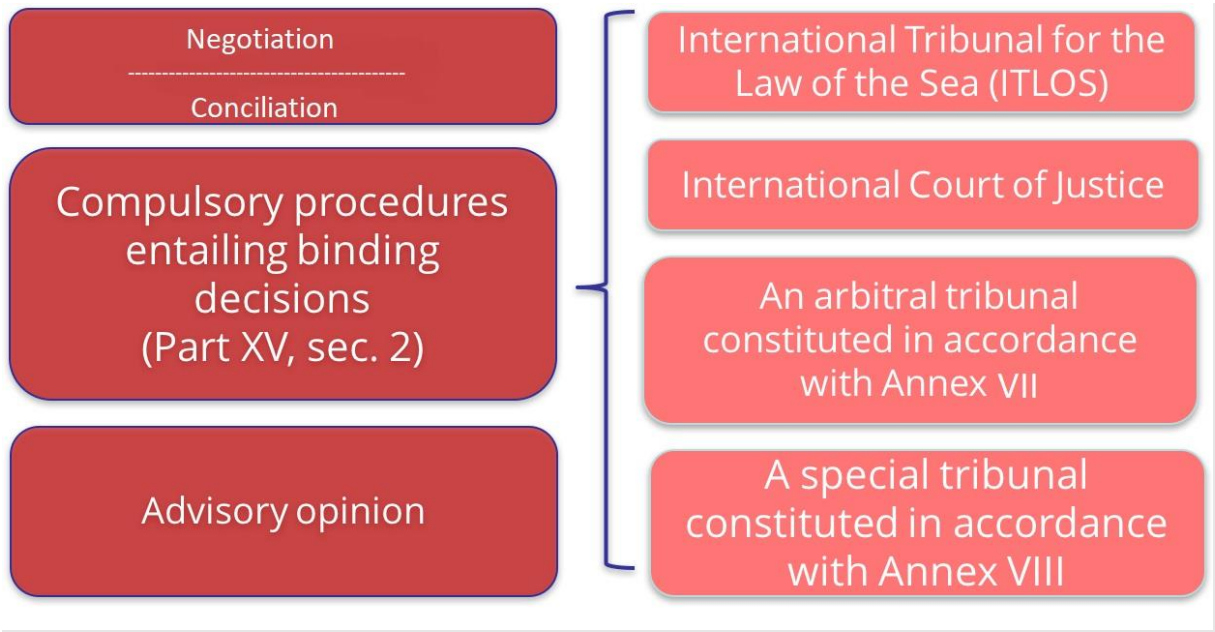
Disputes may arise in all maritime zones with respect to all kinds of activities in the ocean and seas, including in the protection and preservation of the marine environment.

Part XV and annexes V to VIII provide for the regime to settle disputes concerning the interpretation or application of UNCLOS.

General provisions

- General obligation to settle disputes by peaceful means (Article 279).
- Freedom to choose any peaceful means for settling disputes (Article 280).

Peaceful means
The peaceful means for dispute settlement provided under UNCLOS include, *inter alia,* negotiation, conciliation, and compulsory procedures entailing binding decisions.



Advisory opinions

- The UNCLOS framework provides for the possibility of advisory opinions. Article 191 provides that the Seabed Disputes Chamber of the International Tribunal for the Law of the Sea (ITLOS) shall give advisory opinions at the request of the Assembly or the Council of the International Seabed Authority (ISA) on legal questions arising within the scope of their activities and such opinions shall be given as a matter of urgency.
- Article 138 of the Rules of ITLOS states that it may give an advisory opinion on a legal question if an international agreement related to the purposes of UNCLOS specifically provided for the submission to the Tribunal of a request for such an opinion.

2.3 Maritime zones – where are areas beyond national jurisdiction?

Overview of maritime zones provided for in UNCLOS

Baselines: Line from which breadth of maritime zones is measured. Four types: (1) Normal baseline, (2) Straight baseline, (3) Closing line and (4) Archipelagic baseline.

Internal waters: Waters on landward side of baseline. Considered part of the territory: coastal States have sovereignty.

Territorial sea (Articles 2-32): Sovereignty of a coastal State extends beyond its land territory and internal waters and, in case of an archipelagic State, its archipelagic waters, to an adjacent belt of sea: the territorial sea.

- Breadth: up to 12 nautical miles, measured from the baselines
- Entitlement: inherent part of its territory
- Scope: water column, air space, seabed and subsoil

- Third States: right of innocent passage through the territorial sea; right of transit passage through straits used for international navigation.

Contiguous zone (Articles 33; 303): The contiguous zone is a maritime zone contiguous and seaward of the territorial sea within which coastal States have jurisdiction with regard to customs, fiscal, immigration or sanitary laws, as well as the traffic of archaeological and historical objects found in the contiguous zone.

- Breadth: from the outer limit of the territorial sea to up to 24 nautical miles, measured from the baselines
- Entitlement: the coastal State may proclaim it
- Scope: water column and seabed
- Third States: freedoms of navigation, overflight and laying of submarine cables/pipelines.

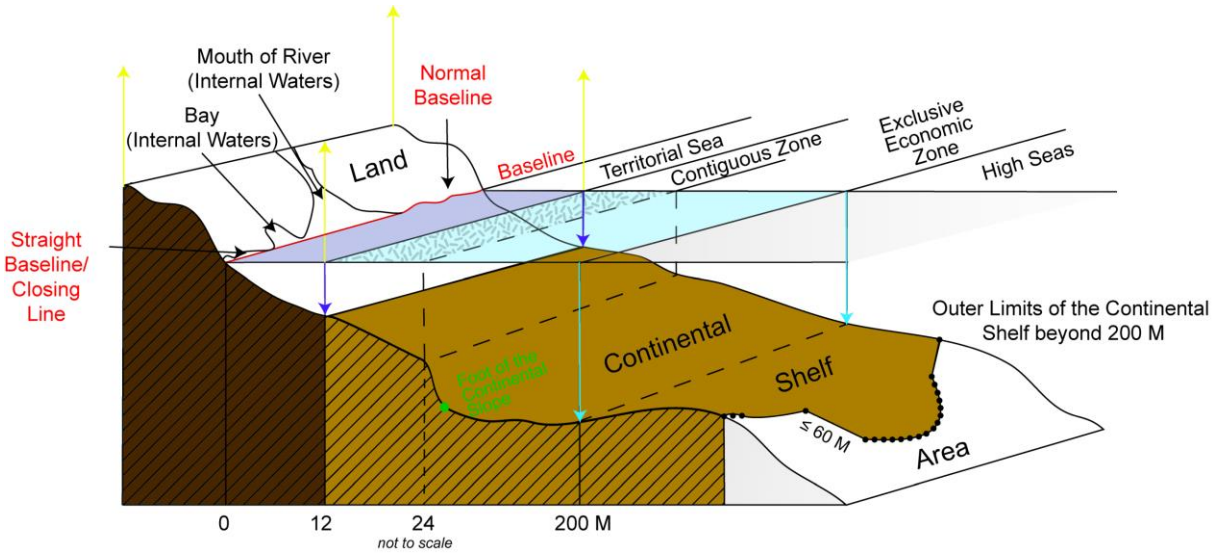
Exclusive economic zone (Articles 55-75): The EEZ is an area beyond and adjacent to the territorial sea.

- Breadth: from the outer limit of the territorial sea to up to 200 nautical miles, measured from the baselines
- Entitlement: the coastal State may proclaim it
- Scope: water column, seabed and subsoil
- Coastal States:
    - Sovereign rights for the purposes of exploring, exploiting, conserving and managing natural resources and with regard to other economic activities
    - Jurisdiction: (i) establishment and use of artificial islands, installations and structures; (ii) marine scientific research; and (iii) protection and preservation of the marine environment
    - Other rights and duties provided for in UNCLOS
- Third States: freedoms of navigation, overflight and laying of submarine cables and pipelines, but also duties.

Continental shelf – legal regime (Articles 76-84): the continental shelf of a coastal State comprises the seabed and subsoil of the submarine areas that extend beyond its territorial sea.

- Breadth: from the outer limits of the territorial sea:
    - up to 200 nautical miles, measured from the baselines, or
    - for the States with continental margins extending beyond 200 nautical miles, up to the outer limits established in accordance with Article 76, paragraph 8, of UNCLOS, on the basis of the recommendations by the Commission on the Limits of the Continental Shelf.
- Entitlement: inherent sovereign rights and jurisdiction
- Scope: seabed and subsoil
- Content of the legal regime: the coastal State has sovereign rights for the purpose of exploring the continental shelf and exploiting its natural resources
- In this context, natural resources consist of mineral resources and other non-living resources of the seabed and subsoil together with living organisms belonging to sedentary species
- These rights are:
    - Exclusive;
    - Independent from occupation or proclamation.

- Third States: no infringement of or unjustifiable interference by the coastal State with navigation and other rights and freedoms of other States (Article 78). All States are entitled to lay submarine cables and pipelines in accordance with Article 79.



Maritime zones beyond areas of national jurisdiction

High seas (Articles 86-120)

- Open to all States, whether coastal or land-locked
- Flag State exclusive jurisdiction with some exceptions
- Freedom of the high seas comprises, inter alia:
    - navigation
    - overflight
    - laying of submarine cables and pipelines
    - constructing artificial islands and other installations
    - fishing, subject to duties of conservation and management
    - scientific research.

Qualified freedoms of the high seas

High seas freedoms are qualified by **general obligations** in UNCLOS:

- States shall exercise the freedoms on the high seas with due regard for the interests of other States in their respective exercise of the freedom of the high seas (Article 87)
- The high seas shall be reserved for peaceful purposes (Article 88)
- No State may validly purport to subject any part of the high seas to its sovereignty (Article 89)
- The duty to protect and preserve the marine environment (Article 192).

High seas freedoms are also qualified by:

- Specific provisions in UNCLOS. For example, the freedom of fishing is subject to:
    - The conditions laid down in Part VII, Section 2;
    - Treaty obligations, for example, the UNFSA.

High seas freedoms must also be exercised with due regard for the rights and interests of coastal States, including with respect to their sovereign rights over the continental shelf. For example, sovereign rights over sedentary species v. high seas freedom of fishing.

Duties of the flag State
UNCLOS sets out general obligations on the flag State in authorizing its vessels to fly its flag.

- Every State shall fix the conditions for the grant of its nationality to ships, for the registration of ships in its territory and for the right to fly its flag. Ships have the nationality of the State whose flag they are entitled to fly. There must exist a "genuine link" between the State and the ship (Article 91 – see also the Judgments of ITLOS in the cases *The M/V "SAIGA" (Saint Vincent and the Grenadines v. Guinea), The M/V "Virginia G" (Panama/Guinea-Bissau)).*
- Every State shall effectively exercise its jurisdiction and control in administrative, technical and social matters over ships flying its flag (Article 94 – see also the Advisory Opinion regarding illegal, unreported and unregulated fishing activities delivered by ITLOS on the Request submitted by the Sub-Regional Fisheries Commission).

Measures to be taken by the flag State
Each State is required to adopt measures that conform to generally accepted international regulations, procedures and practices and to take any steps which may be necessary to secure their observance.

Enforcement jurisdiction on the high seas

- Exclusive jurisdiction of flag States on the high seas is subject to exceptions for ships:
    - Engaged in piracy
    - Engaged in slave trade
    - Engaged in unauthorized broadcasting, under certain conditions
    - Engaged in illicit traffic in narcotic drugs or psychotropic substances, under certain conditions
    - Without nationality
    - Of the same nationality as the boarding warship, even though the boarded ship is flying a foreign flag or refusing to show its flag.
- Warships of other States have "right of visit" (Article 110)
- Hot pursuit (Article 111)
- Other treaties also provide for enforcement action (e.g. UNFSA).

The Area

Over half of the earth surface.

Definitions

- "Area": The seabed and ocean floor and subsoil thereof, beyond the limits of national jurisdiction (Article 1(1)).
- "Activities in the Area": All activities of exploration for, and exploitation of, the resources of the Area (Article 1(3)).
- "Resources": All solid, liquid or gaseous mineral resources *in situ* in the Area at or beneath the seabed, including polymetallic nodules (Article 133).

Main characteristics of the regime for the Area
UNCLOS, Part XI:

- The Area and its resources are the common heritage of mankind (Article 136);
- Open to use exclusively for peaceful purposes (Article 141);
- Activities in the Area shall be carried out for the benefit of mankind as a whole, irrespective of the geographical location of States, whether coastal or land-locked,

and taking into particular consideration the interests and needs of developing States (Article 140);
- No State shall claim or exercise sovereignty or sovereign rights over any part of the Area or its resources (Article 137);
- All rights in the resources of the Area are vested in mankind as a whole, on whose behalf the ISA shall act (Article 137);
- States Parties organize and control activities in the Area, particularly with a view to administering the resources of the Area, through the ISA, in accordance with Part XI of UNCLOS and the Part XI Agreement (Article 137).

Marine scientific research in the Area

- Exclusively for peaceful purposes and for the benefit of mankind as a whole (Article 143);
- All States, irrespective of their geographical location, and competent international organizations have the right, in conformity with the provisions of Part XI, to conduct marine scientific research in the Area (Article 256);
- Part XI provides that States Parties may carry out marine scientific research in the Area (Article 143);
- States Parties shall promote international cooperation in marine scientific research in the Area (Article 143);
- ISA shall promote and encourage the conduct of marine scientific research in the Area, and shall coordinate and disseminate the results of such research and analysis when available (Article 143).

Transfer of technology

- ISA to take measures in accordance with UNCLOS (Article 144):
    - to acquire technology and scientific knowledge relating to activities in the Area; and
    - to promote and encourage the transfer to developing States of such technology and scientific knowledge.

Protection of the marine environment in the Area

- Necessary measures shall be taken with respect to activities in the Area to ensure effective protection for the marine environment from harmful effects which may arise from such activities (Article 145);
- ISA to adopt rules, regulations and procedures for:
    - The prevention, reduction and control of pollution and other hazards to the marine environment; and
    - The protection and conservation of the natural resources of the Area and the prevention of damage to the flora and fauna of the marine environment.

2.4 Protection and preservation of the marine environment

Introduction

The conduct of activities in all maritime zones, including in ABNJ, is subject to:

- The general obligation to protect and preserve the marine environment in Article 192 of Part XII of UNCLOS;
- Other applicable obligations in Part XII of UNCLOS and;
- Other Articles in UNCLOS as well as other relevant international instruments.

The preamble of UNCLOS states that one of the main goals of the legal order established through UNCLOS is to promote the protection and preservation of the marine environment.

The provisions for the protection and preservation of the marine environment set out in UNCLOS are of a general nature and are supplemented and further elaborated upon by other instruments.

In this section you will learn about the regime for the protection and preservation of the marine environment under UNCLOS and the numerous instruments and frameworks that supplement UNCLOS, directly or indirectly addressing issues relevant to the conservation and sustainable use of biodiversity in ABNJ. These include:

- Instruments and frameworks addressing biodiversity generally, including conservation of endangered and/or migratory species;
- sectoral and/or regional instruments, which regulate activities, such as navigation, fishing and seabed activities; and
- relevant instruments concerning sustainable development.

Part XII of UNCLOS, particularly Articles 192 and 193, as well as provisions of relevance in various other parts of the Convention, reflect the balance between sovereign rights over natural resources and uses of the ocean and seas for economic and social development and the obligation to protect and preserve the marine environment.

Part XII UNCLOS

General Provisions – Section 1

Part XII opens with a series of general obligations, which apply to all States in all maritime zones including ABNJ.

There is a general obligation for States to protect and preserve the marine environment (Article 192). But this is qualified by Article 193 – “States have the sovereign right to exploit their natural resources pursuant to their environmental policies and in accordance with their duty to protect and preserve the marine environment”.

States have the duty to take all measures necessary to prevent, reduce and control pollution of the marine environment (Article 194). This obligation is qualified by the statement that States must do so in accordance with their capabilities and use for that purpose the best practical means at their disposal. Article 1 of UNCLOS defines pollution.

Definition of "pollution of the marine environment" under UNCLOS:

"The introduction by man, directly or indirectly, of substances or energy into the marine environment, including estuaries, which results or is likely to result in such deleterious effects as harm to living resources and marine life, hazards to human health, hindrance to marine activities, including fishing and other legitimate uses of the sea, impairment of quality for use of sea water and reduction of amenities;"

- Measures taken include those necessary to protect and preserve rare or fragile ecosystems as well as the habitat of depleted, threatened or endangered species and other forms of marine life (Article 194(5)).
- ITLOS clarified, when it prescribed provisional measures in the Southern Bluefin Tuna Case, that "the conservation of the living resources of the sea is an element in the protection and preservation of the marine environment". It reiterated and elaborated further on the statement in the Request for an Advisory Opinion submitted by the Sub-Regional Fisheries Commission, when it recalled that living resources and marine life are part of the marine environment.
- States have a duty to take all necessary measures to prevent, reduce and control pollution of marine environment resulting from the use of technologies under their jurisdiction or control, and to protect the marine environment from significant and harmful changes resulting from intentional or accidental introduction of alien or new species (Article 196).
- States have a duty to prevent transboundary effects of pollution (Article 194(2)) and not to transfer pollution from one part of the sea to another, or transform one type of pollution into another (Article 195). The duty to prevent transboundary effects of pollution and the duty not to transfer damage or hazards from one area to another or transform one type of pollution into another are two examples of the holistic approach the UNCLOS adopted on the protection and preservation of the marine environment.

Global and Regional Cooperation – Section 2

The duty to cooperate covers three different aspects under UNCLOS:

First, cooperation on a global and regional basis in formulating and elaborating international rules, standards and recommended practices and procedures for the protection and preservation of the marine environment. In undertaking this duty States are requested to take into account characteristic regional features. Many rules, standards and recommended practices and procedures have been developed at the global and regional levels as detailed below.

Second, cooperation is required in the form of a duty of notification of imminent or actual damage as well as a duty for States and competent international organizations to cooperate in eliminating the effects of pollution and preventing or minimizing damage. To this end, States are under a duty to develop and promote contingency plans for responding to pollution incidents.

Third, scientific cooperation. States are under:

> (1) A duty to cooperate for the purpose of promoting studies, undertaking programmes of scientific research and encouraging the exchange of information and data acquired about pollution of the marine environment; and
> (2) A duty to cooperate in establishing appropriate scientific criteria for the formulation and elaboration of rules, standards and recommended practices and procedures for the prevention, reduction and control of pollution of the marine environment.

Monitoring and Environmental Assessment – Section 4

Under Article 204, States have a duty to observe, measure, evaluate and analyse, by recognized scientific methods, the risks or effects of pollution of the marine environment. In particular, States have to keep under surveillance the effects of any activities which they permit or in which they engage in order to determine whether these activities are likely to pollute the marine environment.

Article 205 complements the duty of monitoring by providing for the duty to communicate the results obtained from monitoring. The importance of assessment is also underlined in UNCLOS , in particular through the requirement that when States have reasonable grounds for believing that planned activities under their jurisdiction or control may cause substantial pollution of or significant and harmful changes to the marine environment, they shall, as far as practicable, assess the potential effects of such activities on the marine environment and shall communicate reports of the results of such assessments in the manner provided in Article 205.

These provisions provide the basis for environmental impact assessments under UNCLOS. They are complemented and further developed by the provisions on environmental impact assessments contained in Part IV of the BBNJ Agreement.

International Rules and National Legislation – Section 5

States are required to establish in the case of pollution from seabed activities subject to national jurisdiction, pollution from activities in the Area and pollution from vessels, or endeavour to establish in the case of pollution from land-based sources, pollution by dumping and pollution from or through the atmosphere, especially through the competent international organizations or diplomatic conference, international rules to prevent, reduce and control pollution of the marine environment from the afore-mentioned sources. Many of such international rules can be found in sectoral/regional instruments regulating activities in ABNJ.

States are also required to adopt national laws and regulations to prevent, reduce and control pollution of the marine environment from different sources. The extent to which such laws and regulations are to conform to applicable international rules and standards is set out in different provisions of UNCLOS and varies according to the type of pollution sources being regulated. In the case of pollution from vessels, seabed activities subject to national jurisdiction, and activities in the Area by vessels, installations, structures and other devices, national laws are to be no less effective than the international rules and standards. As to pollution by dumping, national laws and regulations shall be no less effective than the global rules and standards. Stricter rules can be adopted at national level, except those affecting the design, construction, manning or equipment of foreign ships. In the case of pollution from land-based sources and pollution from or through the atmosphere,

international rules and standards are to be taken into account in the adoption of national laws.

Enforcement – Section 6

UNCLOS sets out obligations to enforce national laws and regulations and to adopt laws and regulations and take other measures necessary for the implementation of applicable international rules and standards, established through competent international organizations or diplomatic conference, with respect to pollution:

- From land-based sources
- From sea-bed activities under national jurisdiction
- From or through the atmosphere

Applicable international rules and standards are to be found in other relevant instruments.

Enforcement of international rules, regulations and procedures to prevent, reduce and control pollution of the marine environment from activities in the Area is governed by UNCLOS Part XI.

Laws and regulations and applicable international rules and standards with respect to pollution by dumping shall be enforced by the coastal State, the flag State and any other State depending on the circumstances.

With respect to pollution from vessels, laws and regulations and applicable international rules and standards shall be enforced by flag States, and may also be enforced by port States and coastal States depending on the circumstances.

Safeguards – Section 7

Section 7 provides for procedural and other safeguards against abuses in the exercise of enforcement powers. It is designed to protect the rights of foreign vessels. The inclusion of this Section reflects a balance between the need to protect and preserve the marine environment through more effective measures and the need to maintain freedom of navigation. As a result, the articles in that Section primarily relate to “foreign vessels”.

Responsibility and Liability – Section 9

Article 235 provides that States are responsible for the fulfilment of their international obligations concerning the protection and preservation of the marine environment and that they shall be liable in accordance with international law.

- To note: The relevant work of the International Law Commission provides guidance in that regard on the current state of international law (Draft articles on the Responsibility of States for Internationally Wrongful Acts; Draft articles on Prevention of Transboundary Harm from Hazardous Activities; and Draft principles on the allocation of loss in the case of transboundary harm arising out of hazardous activities).

States are under a duty to ensure that prompt and adequate compensation or other relief in respect of damage caused by pollution of the marine environment by natural or juridical persons under their jurisdiction are available.

Sovereign Immunity – Section 10
States have the duty to ensure that the following vessels or aircraft act in a manner consistent with the provisions of UNCLOS regarding the protection and preservation of the marine environment, so far as is reasonable and practicable:

- warships
- naval auxiliary
- other vessels or aircraft owned or operated by a State and used, for the time being, only on governmental non-commercial service

Obligations under other conventions – Section 11
Part XII is without prejudice to:

- Specific obligations under special conventions and agreements concluded previously on the protection and preservation of the marine environment
- Agreements which may be concluded in furtherance of the general principles set forth in UNCLOS

Specific obligations under such conventions and agreements are to be carried out in a manner consistent with the general principles and objectives of UNCLOS.

As a framework instrument, UNCLOS relies on the effective implementation of a number of specialized instruments, and requires such instruments to be developed where these do not exist.

Climate change

The interlinkages between climate change and the ocean call for diverse and cross-sectoral responses to address the effects of climate change and related changes in the atmosphere on oceans. Cooperation and coordination and integrated approaches at all levels are therefore essential in the planning and implementation of successful action to tackle this global challenge.

Several international legal and policy instruments contain measures to tackle the effects of climate change on oceans:

- **UNCLOS**: While UNCLOS does not refer to climate change, its provisions on pollution from land-based sources and pollution from or through the atmosphere provide a relevant framework to regulate greenhouse gas emissions in as far as they impact the marine environment.
- **United Nations Framework Convention on Climate Change** (UNFCCC): Has as its objective the "stabilization of greenhouse gas concentrations in the atmosphere at a level that would prevent dangerous anthropogenic interference with the climate system to, inter alia, allow ecosystems to adapt naturally to climate change, to ensure that food production is not threatened".
- **Paris Agreement**: Commits all States to reduce rates of GHG emissions with the objective of holding the increase in the global average temperature to well below 2°C above pre-industrial levels and to pursue efforts to limit the temperature increase to 1.5°C.

Other relevant instruments

Convention on Biological Diversity (CBD)



Three main objectives (Article 1):

- Conservation of biological diversity,
- Sustainable use of its components, and
- Fair and equitable sharing of the benefits arising out of the utilization of genetic resources.

Not applicable to components of biodiversity in ABNJ (Article 4)

Obligation of cooperation for the conservation and sustainable use of biodiversity in ABNJ (Article 5)

Kunming-Montreal Global Biodiversity Framework (GBF)

- Adopted in 2022 during the fifteenth meeting of the Conference of the Parties (COP 15) to the CBD.
- Action- and results-oriented.
- Aims to transform societies' relationship with biodiversity by 2030, in line with the 2030 Agenda for Sustainable Development and its Sustainable Development Goals, and ensure that, by 2050, the shared vision of living in harmony with nature is fulfilled.
- Among its key elements are 4 goals for 2050 and 23 targets for 2030.

Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES)



- CITES addresses threats to biodiversity by controlling and/or preventing trade in species of wild fauna and flora when they are threatened by over-exploitation or extinction as a result of trade.
- CITES bans commercial international trade on an agreed list of endangered species (appendix I) and regulates and monitors trade in others that might become endangered (appendix II).
- Species that are not necessarily threatened on a global level, but that are protected within individual States, may be listed in appendix III where that State has sought the help of other CITES Parties to control international trade in that species.

Convention on Migratory Species of Wild Animals (CMS)



- CMS requires its Contracting Parties to take, individually or in cooperation, appropriate and necessary steps to conserve migratory species and their habitats.
- Migratory species and habitats protected by the Convention are listed in two appendices: appendix I species, which are in danger of extinction and for which specific obligations are undertaken, and appendix II species, which need or would significantly benefit from international cooperation.
- Several marine species are included in appendices I and II.

Sustainable Development instruments

Major global instruments on sustainable development, while not legally binding, are also relevant to biodiversity in ABNJ. Indeed, the protection of biodiversity, including marine biodiversity, has been an important point of emphasis since 1992. Most recently:

- **The 2030 Agenda**: The 2030 Agenda for Sustainable Development incorporates goals and targets – in particular Goal 14: "Conserve and sustainably use the oceans, seas and marine resources for sustainable development" - the implementation of which would also benefit ABNJ.
- **UN Ocean Conferences to support implementation of SDG14**: In 2015, the UN General Assembly decided to convene a high-level United Nations Conference to Support the Implementation of Sustainable Development Goal 14. The first UN Ocean Conference was held at UN Headquarters in New York in 2017. This first Conference was followed by a second one held in Portugal in 2022. A third UN Ocean Conference will be held in 2025 in France.

Other relevant instruments are outlined in section 2.6.

2.5 Marine scientific research and the development and transfer of marine technology

Introduction

UNCLOS recognizes, in its preamble, the need to promote the study of the marine environment.

UNCLOS sets out the legal regime for marine scientific research (MSR) and the development and transfer of marine technology (TMT) in Parts XIII and XIV, respectively. However, there are also provisions in other Parts of UNCLOS which are relevant.

Marine scientific research

UNCLOS Part XIII

Part XIII of UNCLOS lays down a comprehensive global regime under which States are required to conduct MSR and cooperate in such research.

It strikes a balance between the rights of the coastal State to regulate and authorize the conduct of MSR in zones under its sovereignty or jurisdiction, and the rights of researching States to carry out research.

Scope of MSR

Different views were expressed during the negotiations of UNCLOS on what MSR might encompass. Over the course of negotiations, it became clear that it would be difficult to distinguish between research directed at the exploration and exploitation of marine resources or at other purposes (i.e. applied research) and research not directed towards those purposes (i.e. fundamental or pure research).

There is therefore no definition of MSR in UNCLOS. There is also no definition of other related activities including survey activities, prospecting or exploration.

The result has been a divergence in State interpretations of what MSR encompasses.

General provisions

All States and competent international organizations have the right to conduct MSR. This right is not absolute, but subject to the rights and duties of other States as provided for in UNCLOS (Article 238).

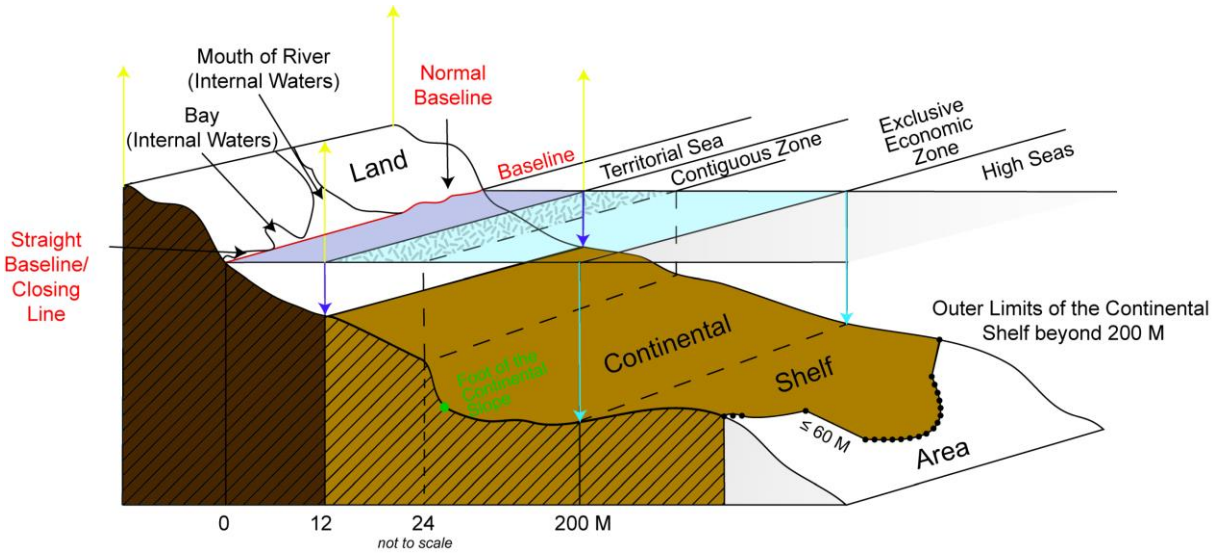
States and competent international organizations have a duty to promote and facilitate the development and conduct of MSR (Article 239).

General principles (Articles 240 and 241)

- MSR must be conducted exclusively for peaceful purposes;
- MSR must also be conducted with appropriate scientific methods and means;
- MSR must not unjustifiably interfere with other legitimate uses of the sea (e.g. fishing or navigation shall be duly respected in the course of such uses);
- MSR must be conducted in compliance with relevant regulations (e.g. for the protection and preservation of the marine environment);
- MSR activities cannot form the legal basis for any claim to any part of the marine environment or its resources.

MSR in different maritime zones

MSR can be conducted in all maritime zones, but the regime that applies is different.



***Territorial Sea**:*

- Coastal States have the exclusive right to regulate, authorize and conduct MSR. MSR can only be conducted in the territorial sea with the express consent of and under the conditions set forth by the coastal State (Article 245).

EEZ and Continental Shelf:

- Coastal States have the right to regulate, authorize and conduct MSR (Article 246).
    - Coastal States shall, in normal circumstances, grant their consent for MSR projects by other States or competent international organizations in their EEZ or on their continental shelf to be carried out in accordance with UNCLOS exclusively for peaceful purposes and in order to increase scientific knowledge of the marine environment for the benefit of all mankind.
    - Coastal States can only withhold consent in certain specific circumstances.
    - Coastal States cannot withhold consent for MSR projects on the continental shelf beyond 200 nautical miles, except in specific areas designated for exploration or exploitation of resources.

Area:

- MSR in the Area is to be conducted in accordance with Part XI and XIII of UNCLOS and the Part XI Agreement and for the benefit of mankind.
- The role of the ISA in this context is to (Article 143):
    - Promote and encourage conduct of research;
    - Coordinate and disseminate results of research and analysis, when available, with particular emphasis on research related to the environmental impact of activities in the Area; and
    - May carry out MSR relating to the Area and its mineral resources and enter into contracts for that purpose.
- States Parties to UNCLOS may also carry out MSR in the Area. They shall promote international cooperation in MSR in the Area by participating in international programmes and encouraging cooperation in MSR; ensuring that programmes are developed through the ISA or other international organizations as appropriate with a view to *inter alia* strengthen the research capabilities and training the personnel of developing States and technologically less developed States; and effectively disseminating research results and analysis.

***High Seas**:*

- All States, irrespective of their geographical location, and competent international organizations have the right to conduct MSR (Article 238);
- Must have due regard for the interests of other States in their exercise of the freedoms of the high seas (Article 87(2));
- Must have due regard for the rights related to activities in the Area (Article 87(2));
- Must make available by publication and dissemination knowledge resulting from MSR (Article 244).

International cooperation in MSR

- States and international organizations shall promote international cooperation in MSR on the basis of mutual benefit (Article 242).
- Specifically, international cooperation is foreseen in the form of:
    - Conclusion of bilateral and multilateral agreements to create favourable conditions for MSR (Article 243);
    - Integration of the efforts of scientists in studying the essence of phenomena and processes occurring in the marine environment and the interrelations between them (Article 243).
- There are also a number of obligations in relation to publication and dissemination of information and knowledge in UNCLOS. States and competent international organizations are to make available information on MSR programmes, their objectives and knowledge resulting from MSR (Article 244(1)). States are to actively promote the flow of scientific data and information and the transfer of knowledge resulting from MSR, especially to developing States, and the strengthening of the autonomous MSR capabilities of developing States (Article 244(2)).
- Obligations regarding the publication of results, the dissemination of scientific data, information and knowledge, including that acquired through MSR, are also included in Parts XI, XII, and XIV.

Other provisions

- UNCLOS also contains provisions relating to the deployment and use of scientific research installations or equipment in the marine environment (Articles 258 to 262); responsibility and liability (Article 263); and settlement of disputes and interim measures (Articles 264 to 265).

The BBNJ Agreement includes a number of provisions of relevance to marine scientific research in areas beyond national jurisdiction.

Development and Transfer of Marine Technology

UNCLOS Part XIV

UNCLOS provides a strong treaty basis for fostering the transfer of marine technology (TMT) to States that need and request technical assistance, particularly developing States.

Scope of TMT

"Marine technology" is not defined in UNCLOS. However, technology is described in the IOC Criteria and Guidelines on the Transfer of Marine Technology and includes the following:



General provisions (Articles 266 and 267)

- Development and TMT on fair and reasonable terms and conditions;
- Development of marine scientific and technological capacity of States which may need and request technical assistance in this field, particularly developing States, including land-locked and geographically disadvantaged developing States, with regard to the exploration, exploitation, conservation and management of marine resources, the protection and preservation of the marine environment, marine scientific research and other activities in the marine environment compatible with UNCLOS, with a view to accelerating the social and economic development of developing States;
- Fostering of favourable economic and legal conditions for TMT for the benefit of all parties on an equitable basis;
- Due regard for all legitimate interests, including, inter alia, the rights and duties of holders, suppliers and recipients of marine technology.

Objectives and how to achieve them:

The basic objectives are (Article 268):

- Acquisition, evaluation and dissemination of marine technological knowledge and access to information and data;
- Development of appropriate marine technology;
- Development of necessary technological infrastructure to facilitate TMT;
- Development of human resources through training and education of nationals of developing States and countries and especially the nationals of the least developed among them;
- International cooperation at all levels.

To achieve the basic objectives, States shall endeavour to (Article 269):

- Establish programmes of technical cooperation for effective TMT to developing States which have not been able to establish or develop their own technological capacity in marine science and in the exploration and exploitation of marine resources or to develop the infrastructure of such technology;
- Promote favourable conditions for the conclusion of agreements and contracts, under equitable and reasonable conditions;
- Hold conferences, seminars and symposia on scientific and technological subjects;
- Promote the exchange of scientists and of technological and other experts;
- Undertake projects and promote joint ventures and other forms of bilateral and multilateral cooperation.

National and regional centres

States shall promote the establishment, particularly in developing coastal States, of national marine scientific and technological research centres, and the strengthening of existing, national centres, in order to stimulate and advance the conduct of MSR by developing States and enhance their national capabilities to utilize and preserve their marine resources for their economic benefit (Article 275(1)). States are also to give adequate support to facilitate the establishment and strengthening of such national centres so as to provide for advanced training facilities and necessary equipment, skills and know-how (Article 275(2)).

States, in coordination with competent international organizations, are also to promote the establishment of regional centres, particularly in developing States (Article 276), *inter alia* to foster the transfer of marine technology, as well as (Article 277):

- Training, education and studies in various fields;
- Organization of regional conferences, seminars and symposia;
- Acquisition and processing of marine scientific and technological data and information and dissemination of results of research;
- Publication and comparative study of national policies;
- Compilation of information on technology marketing, and on contracts and other arrangements concerning patents;
- Technical cooperation with other States of the region.

International cooperation on MSR and TMT

UNCLOS imposes obligations related to international coordination and cooperation through bilateral, regional, and multilateral programmes and appropriate funding, to facilitate MSR and the development and TMT. This includes:

- Coordination of activities in the field of TMT of competent international organizations, taking into account the interests and needs of developing States, particularly land-locked and geographically disadvantaged States (Article 272);
- Cooperation with competent international organizations and ISA (Article 273);
- Cooperation among competent international organizations (Article 278);
- ISA is to acquire technology and scientific knowledge relating to activities in the Area, and to promote and encourage their transfer to developing States (Article 144(1)), and to ensure that States that may need and request technical assistance are assisted in acquiring *inter alia* necessary equipment, technical know-how through any financial arrangements provided for in UNCLOS (Article 274(d)).

Other relevant provisions of UNCLOS

- The marine environment:
    - States are to promote programmes of scientific, educational, technical and other assistance to developing States for the protection and preservation of the marine environment and the prevention, reduction and control of marine pollution, including by (Article 202):
        - Training their scientific and technical personnel;
        - Facilitating their participation in relevant international programmes;
        - Supplying them with the necessary equipment and facilities;
        - Enhancing their capacity to manufacture such equipment;
        - Providing advice on, and developing facilities for, research, monitoring, education and other programmes;
        - Providing assistance for the preparation of environmental assessments.
- The conservation and management of living marine resources:
    - UNFSA also has dedicated provisions regarding cooperation in scientific research, which includes an obligation to cooperate to strengthen scientific research capacity in the field of fisheries and actively promote the publication and dissemination of results (UNFSA, Article 14)

Although UNCLOS does not use the phrase “capacity-building”, several of its provisions address the need to **build the capacity** of States, in particular of developing States, as well as **the transfer of marine technology**.

The BBNJ Agreement includes provisions on the capacity-building and the transfer of marine technology.

2.6 Regime for activities in areas beyond national jurisdiction

Fishing

UNCLOS sets out the legal regime for sustainable fisheries under international law.

Part VII, Section 2, provides the legal framework for the conservation and management of living resources of the high seas, including the obligation on States, whose nationals exploit such resources, to cooperate in taking the measures necessary for the conservation of the living resources concerned. In addition, Articles 63 and 64 set out specific obligations of States for cooperation in respect of straddling fish stocks, which are located both within the EEZ and in an area beyond and adjacent to it, and highly migratory fish stocks, which migrate over vast areas of the oceans.

In this respect, all States have the right for their nationals to engage in fishing on the high seas, subject to certain qualifications, including their treaty obligations, and the provisions set out in Part VII, Section 2 of UNCLOS.

UNCLOS requires States to cooperate directly or through existing organizations for the conservation and management of the living resources in the high seas. Cooperation in this respect includes entering into negotiations with a view to taking conservation measures for the stocks concerned, and establishing a subregional or regional fisheries management

organization where none exist, as a forum for such cooperation. It also includes the exchange of available scientific information, catch and fishing effort statistics and other data on a regular basis through the competent international organizations at the subregional, regional and global levels.

UNCLOS also provides parallel obligations in the EEZ for States to adopt conservation and management measures based on the best scientific evidence available, directed at maintaining populations at levels that can produce the maximum sustainable yield (MSY), as qualified by relevant environmental and economic factors, and for taking into consideration the effects of these measures on associated or dependent species.

The **UNFSA** implements provisions in UNCLOS requiring cooperation between coastal States and high seas fishing States and provides the legal regime for the conservation and management of straddling fish stocks and highly migratory fish stocks.
In doing so, UNFSA contains principles of conservation and management already established in UNCLOS as well as norms and rules developing, strengthening or facilitating the implementation of relevant provisions of UNCLOS In some cases, UNFSA also contains provisions which break new ground and go beyond what is already provided in UNCLOS.

Some of the elements of the UNFSA regime for fishing activities are:

- Cooperation in the conservation and management of straddling fish stocks and highly migratory fish stocks
- Compatibility of conservation and management measures established for the high seas and those adopted for areas under national jurisdiction to ensure conservation and management of the straddling fish stocks and highly migratory fish stocks in their entirety.
- Application of the precautionary approach
- Application of an ecosystem approach
- Flag State responsibilities
- Port State measures

UNFSA gives a key role to regional fisheries management organizations and arrangements (RFMOs/As) for the conservation and management of straddling fish stocks and highly migratory fish stocks in accordance with each RFMO/A's geographic scope and specific species coverage

Efforts are on-going to improve the conservation and management of covered stocks, including through the Review Conference on UNFSA.

The provisions of UNCLOS and UNFSA are complemented by **other international instruments** (e.g. FAO instruments, such as the Agreement to Promote Compliance with International Conservation and Management Measures by Fishing Vessels on the High Seas, UN General Assembly resolutions, Regional Fisheries Management Organizations (RFMOs) instruments and biodiversity instruments)

Shipping

UNCLOS sets out the legal regime for navigation (and overflight), including on the high seas:

- The high seas are open to the vessels and aircrafts of all States.
- Freedom of navigation provides ships of any State with the right to traverse the high seas with no or minimal interference from any other State. A key aspect of freedom of navigation is that it is exercised under the exclusive jurisdiction of the flag State.

- However, even on the high seas, freedom of navigation is not without limitations and obligations. It must be exercised subject to the conditions laid down in UNCLOS, including those on the protection and preservation of the marine environment, and other applicable treaties and principles of international law.

The provisions of UNCLOS are complemented by **other international instruments**, in particular those established under the auspices of the IMO. A large number of IMO instruments regulate shipping on the high seas, including:

- Pollution prevention
  - The International Convention for the Prevention of Pollution from Ships, 1973 as modified by the Protocol of 1978 (MARPOL 73-78) - including designation of special areas
- Pollution preparedness, response and cooperation
  - International Convention on Oil Pollution Preparedness, Response and Co-operation and its 2000 Protocol
- Anti-fouling systems on ships
  - International Convention on the Control of Harmful Anti-fouling Systems on Ships
- Ballast water management
  - The International Convention for the Control and Management of Ships' Ballast Water and Sediments
- Dumping
  - Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, 1972 and its 1996 Protocol

Laying of cables and pipelines

Under UNCLOS, all States are entitled to lay submarine cables and pipelines on the bed of the high seas beyond the continental shelf.
Other relevant international instruments include the International Convention for the Protection of Submarine Telegraph Cables 1884.

Construction of artificial islands and other installations

States have the freedom to construct artificial islands and other installations on the high seas beyond the continental shelf.
But installations used for carrying out activities in the Area must comply with Part XI, and are subject to the rules, regulations and procedures of the ISA.

Land-based activities

Pollution from land-based sources is one of the most pressing threats to coastal and marine habitats, accounting for approximately 80% of marine pollution globally. Areas beyond national jurisdiction, though far from land, are also affected by pollution from land-based sources.

- **Global Programme of Action** for the Protection of the Marine Environment from Land-based Activities (GPA):

  Adopted in 1995, the GPA aims to be a source of conceptual and practical guidance to be drawn upon by national and regional authorities for devising and implementing

sustained action to prevent, reduce, control and eliminate marine degradation from land-based activities.

- **Basel, Stockholm and Minamata Conventions**

  Also relevant to efforts to control pollution from land-based sources are:

  - The Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal: Governments recently amended the Basel Convention to include plastic waste in a legally-binding framework which will make global trade in plastic waste more transparent and better regulated, whilst also ensuring that its management is safer for human health and the environment.
  - The Stockholm Convention on Persistent Organic Pollutants, and
  - The Minamata Convention on Mercury.

- A new **international** legally binding instrument on plastic pollution, including in the marine environment, is currently under negotiation within the framework of an intergovernmental negotiating committee established by a resolution of the United Nations Environment Assembly of the United Nations Environment Programme.
- **Regional Instruments:**

  There are also relevant regional instruments which address issues related to pollution from land-based activities. For example, the Protocol Concerning Pollution from Land-Based Sources and Activities to the Cartagena Convention (Wider Caribbean Region) and the Protocol for the Protection of the Mediterranean Sea against Pollution from Land-based Sources.

Pollution from or through the atmosphere

Another pathway of ocean pollution occurs from or through the atmosphere. As noted above, this is recognized in Article 212 of UNCLOS.

Relevant international instruments, which regulate human activities affecting the ozone layer, include the Vienna Convention for the Protection of the Ozone Layer and the Montreal Protocol on Substances that Deplete the Ozone Layer. **MARPOL**, in its Annex VI, includes regulations on emissions from ships which are also relevant in this context.

Exploration and exploitation of resources in the Area

Activities in the Area are to be carried out for the benefit of mankind as a whole, irrespective of the geographical location of States, whether coastal or land-locked. The Area shall be open to use exclusively for peaceful purposes.

Exploration and exploitation in the Area can only be carried out under a contract with the ISA. The ISA may conclude contracts with:

- States Parties to UNCLOS
- State enterprise sponsored by a State Party to UNCLOS
- Natural or juridical person possessing the nationality of a State Party and sponsored by a State Party.

Provisions governing exploration and exploitation activities in the Area include:

- UNCLOS, Part XI
- Part XI Agreement

- Rules, regulations and procedures adopted by the ISA:
    - Regulations on Prospecting and Exploration for Polymetallic Nodules
    - Regulations on Prospecting and Exploration for Polymetallic Sulphides
    - Regulations on Prospecting and Exploration for Cobalt-rich Ferromanganese Crusts

The ISA is currently developing draft regulations on exploitation of mineral resources in the Area.

New activities

Technological advances are rendering possible new activities on the high seas and in the Area. Such activities might include, for example, geoengineering, generation of energy from renewable sources and open ocean aquaculture.

As the UNCLOS list of high seas freedoms is not exhaustive - it is introduced by the words “inter alia” - the presumption is that new activities on the high seas are governed by the freedom of the high seas. Accordingly, these activities shall be carried out with due regard for the interests of other States in their exercise of the freedom of the high seas, and also with due regard for the rights under UNCLOS with respect to activities in the Area.

The BBNJ Agreement contains a number of provisions that will also apply to new activities in the high seas and in the Area.

2.7 Recap

UNCLOS - general aspects

- UN Convention on the Law of the Sea. Opened for signature in 1982 and entered into force in 1994.
- Constitution for the Ocean – sets out the legal framework within which all activities in the ocean and seas must be carried out, incorporating agreed balances and compromises.
- Framework Convention – UNCLOS addresses a wide range of issues and its provisions have been further elaborated upon by sector-specific instruments (including Part XI Agreement, UNFSA) and the BBNJ Agreement.
- Part XI, section 5, Part XV and annexes V to VIII set out the regime for the settlement of disputes concerning the interpretation or application of UNCLOS. General obligation to settle disputes by ”peaceful means" which include negotiation, conciliation, and compulsory procedures entailing binding decisions.

Maritime Zones

Areas within national jurisdiction			
Zone	**Breadth**	**Rights of coastal States**	**Rights of third States**
Internal Waters	Waters on the landward side of baselines	Sovereignty	Rights of innocent passage in certain circumstances, and access to ports in case of distress and based on bilateral treaties
Territorial Sea	From the baselines up to 12 nautical miles (M)	Sovereignty	Rights of innocent passage and of transit passage (in straits used for international navigation)
Archipelagic Waters	From the landward side of archipelagic baseline to the seaward side of straight or normal baselines	Sovereignty	Rights of innocent passage and of archipelagic sea lanes passage
Contiguous Zone	From the outer limits of the territorial sea up to 24 M	Jurisdiction with regard to customs, fiscal, immigration or sanitary laws as well as the control of traffic of archaeological and historical objects found in the contiguous zone	Freedoms of navigation, overflight, and other international lawful uses related thereto, such as laying of submarine cables/pipelines
Exclusive Economic Zone	From the outer limits of the territorial sea up to 200 M	Sovereign rights for the purpose of exploring and exploiting the zone's natural resources and related activities, and jurisdiction with regard to the establishment and use of artificial islands, installations and structures, marine scientific research, protection and preservation of the marine environment	Freedoms of navigation, overflight, and other international lawful uses related thereto, such as laying of submarine cables/pipelines
Continental Shelf	From the outer limits of the territorial sea's seabed and subsoil up to 200 M or, for States with continental margins wider than 200 M, up to the outer limits	Sovereign rights for the purpose of exploring and exploiting, jurisdiction over artificial islands, installations and structures, and cables and pipelines used in	Laying of submarine cables/pipelines

	established pursuant to UNCLOS' Art. 76	connection with exploration and exploitation or the operation of artificial islands, installations and structures	

Areas Beyond National Jurisdiction		
Zone	**Location**	**Legal regime**
High Seas	All parts of the sea that are not included in the exclusive economic zone, in the territorial sea or in the internal waters of a State, or in the archipelagic waters of an archipelagic State.	• Open to all States, whether coastal or land-locked • Flag States exclusive jurisdiction with some exceptions • Freedom of the high seas comprises, inter alia, ○ Navigation ○ Overflight ○ Laying of submarine cables/pipelines ○ Fishing, subject to certain conditions ○ Scientific research • These freedoms are qualified by: ○ General obligations under UNCLOS, including duty to protect and preserve the marine environment and to cooperate in the conservation and management of living resources ○ Due regard for the interests of other States in their exercise of the freedom of the high seas, and also with due regard for the rights under UNCLOS with respect to activities in the Area. ○ Specific provisions in UNCLOS ○ Other treaty obligations (e.g. UNFSA)
International seabed area (The Area)	Seabed and ocean floor and subsoil thereof, beyond the limits of national jurisdiction	• Area and its resources are the common heritage of mankind • Activities in the Area shall be carried out for the benefit of mankind as a whole • States Parties organize and control activities in the Area, particular with a view to administering its resources, through the ISA, in accordance with Part XI of UNCLOS and the Part XI Agreement

Protection and Preservation of the Marine Environment

- Part XII, UNCLOS sets out the general obligation to protect and preserve the marine environment (Article 192).
- States are required to take, individually or jointly as appropriate, all measures consistent with this Convention that are necessary to prevent, reduce and control pollution of the marine environment from any source. The measures taken shall include those necessary to protect and preserve rare or fragile ecosystems as well as

the habitat of depleted, threatened or endangered species and other forms of marine life.

- States are required to take all measures necessary to ensure that activities under their jurisdiction or control are so conducted as not to cause damage by pollution to other States and their environment, and that pollution arising from incidents or activities under their jurisdiction or control does not spread beyond the areas where they exercise sovereign rights.
- States are required to cooperate on a global and regional basis in formulating and elaborating international rules, standards and recommended practices and procedures consistent with UNCLOS, for the protection and preservation of the marine environment.
- When States have reasonable grounds for believing that planned activities under their jurisdiction or control may cause substantial pollution of or significant and harmful changes to the marine environment, they shall, as far as practicable, assess the potential effects of such activities on the marine environment and report on them.
- Other relevant international instruments include:
    - Biodiversity instruments and frameworks (e.g. CBD, GBF, CITES, CMS)
    - Pollution instruments (e.g. MARPOL)
    - Sustainable development instruments

Marine scientific research and the development and transfer of marine technology

- Marine Scientific Research
    - UNCLOS Part XIII lays down a comprehensive global regime under which all States and competent international organizations have the right to conduct MSR and a duty to promote and facilitate such research.
    - There is no definition of MSR in UNCLOS.
    - MSR must be conducted exclusively for peaceful purposes, using appropriate scientific methods and means, and not unjustifiably interfere with other legitimate uses of the sea. States and international organizations shall promote international cooperation in MSR on the basis of mutual benefit.
    - States also have obligations concerning the publication and dissemination of information and knowledge.
    - MSR in the Area is to be conducted in accordance with Part XI of UNCLOS and the Part XI Agreement and for the benefit of humankind. The ISA has a specific mandate in this context.
    - All States, irrespective of their geographical location, and competent international organizations have the right to conduct MSR in the high seas. They must have due regard for the interests of other States in their exercise of the freedoms of the high seas, and for the rights related to activities in the Area.
- Development and transfer of marine technology
    - UNCLOS contains obligations related to the development of marine scientific and technological capacity of States which may need and request technical assistance, particularly developing States, regarding a number of activities in the marine environment compatible with UNCLOS, with a view to accelerating the social and economic development of developing States.
    - The basic objectives of Part XIV include the acquisition, evaluation and dissemination of marine technological knowledge and access to information

and data; the development of appropriate marine technology; the development of the necessary technological infrastructure to facilitate TMT; the development of human resources; and international cooperation at all levels.
    - To achieve the basic objectives, States shall endeavour to establish programmes of technical cooperation for effective TMT; promote favourable conditions for the conclusion of agreements and contracts; hold events on scientific and technological subjects; promote the exchange of scientists and of technological and other experts; undertake projects, and promote joint ventures and other forms of bilateral and multilateral cooperation.
    - States shall promote the establishment of national and regional centres in order to *inter alia* stimulate and advance the conduct of MSR by developing States. The functions of regional centres also include to foster the transfer of marine technology.

Regime for various activities in ABNJ

- Fishing
    - UNCLOS sets out the legal regime for sustainable fisheries under international law.
    - UNFSA sets out a detailed legal regime for straddling fish stocks and highly migratory fish stocks.
    - Complemented by other international instruments (e.g. FAO instruments, UN General Assembly resolutions, RFMOs instruments and biodiversity instruments).
- Shipping
    - UNCLOS sets out legal regime for navigation (and overflight) on the high seas under international law.
    - Complemented by other international instruments, including those established under the auspices of the IMO.
- Cables and pipelines
    - UNCLOS: all States are entitled to lay submarine cables and pipelines on the bed of the high seas beyond the continental shelf.
    - Other relevant international instruments include the International Convention for the Protection of Submarine Telegraph Cables 1884.
- Artificial islands and other installations
    - Freedom to construct artificial islands and other installations permitted under international law on the high seas beyond the continental shelf.
    - But installations used for carrying out activities in the Area must comply with Part XI, and are subject to the rules, regulations and procedures of the ISA.
- Land-based activities
    - Global Programme of Action
    - Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and their Disposal
    - Stockholm Convention on Persistent Organic Pollutants
    - Minamata Convention on Mercury
    - Vienna Convention and Montreal Protocol on Ozone Layer
    - New development: New plastics treaty under negotiation
- Pollution from or through the atmosphere

    - UNCLOS includes provisions on pollution from or through the atmosphere.
    - 1992 UNFCCC, 1997 Kyoto Protocol, 2015 Paris Agreement.
    - Emissions from ships - MARPOL, Annex VI.
- Exploration and exploitation of resources in the Area
    - UNCLOS Part XI.
    - Part XI Agreement.
    - Rules, regulations and procedures of ISA:
        - Regulations on Prospecting and Exploration for Polymetallic Nodules
        - Regulations on Prospecting and Exploration for Polymetallic Sulphides
        - Regulations on Prospecting and Exploration for Cobalt-Rich Crusts
    - New development: Exploitation Code.
- New activities
    - The UNCLOS list of freedoms on the high seas is non-exhaustive.
    - Presumption that the regime of qualified freedoms of the high seas also applies to new activities on the high seas
    - A number of BBNJ provisions will apply to new activities in ABNJ

Lesson 3

Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction

3.1 Learning objectives

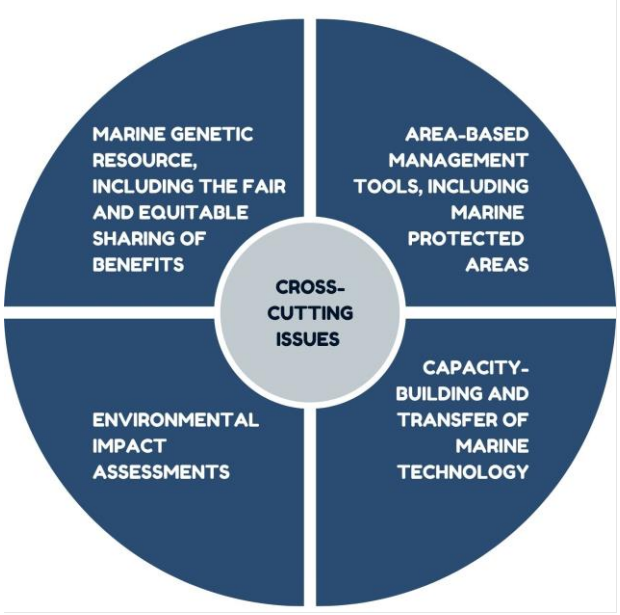
By the end of this module, you will be able to:

- Explain what is understood by marine genetic resources (MGRs) and the key elements of the BBNJ Agreement addressing MGRs of areas beyond national jurisdiction.
- Define area-based management tools (ABMTs), including marine protected areas (MPAs), and understand the applicable legal framework in the BBNJ Agreement.
- Explain what an environmental impact assessment (EIA) is and the key elements of the BBNJ Agreement relating thereto.
- Explain what is understood by capacity-building and the transfer of marine technology and how they are addressed under the BBNJ Agreement.
- Understand the cross-cutting issues addressed in the BBNJ instrument.

3.2 The package of issues

As we saw in the introductory lesson, in convening the BBNJ Intergovernmental Conference, the UN General Assembly decided that the negotiations were to address the "package of issues" agreed in 2011, namely, the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, in particular, together and as a whole, marine genetic resources, including questions on the sharing of benefits, measures such as area-based management tools, including marine protected areas, environmental impact assessments and capacity-building and the transfer of marine technology. Cross-cutting issues were also considered.

The BBNJ Agreement contains provisions addressing this package of issues, including the four key issues and cross-cutting issues. See the diagram below:



We are now going to study these issues and the key elements of the BBNJ Agreement addressing them.

3.3 Marine genetic resources, including the fair and equitable sharing of benefits

Introduction

Genes hold the information to build and maintain an organism's cells and pass genetic traits to offspring. All organisms have genes corresponding to various biological traits, some of which are immediately visible, such as eye colour, and some of which are not, such as blood type, increased risk to specific diseases, or the thousands of basic biochemical processes that comprise life.

Owing to their properties, which allow certain species and organisms to thrive under extreme conditions of heat, pressure and toxicity, there is increasing scientific and commercial interest in marine genes from a number of sectors such as pharmaceuticals (including to create medicines to cure diseases such as cancer or HIV for example) and the food sector, cosmetics sector and bioremediation sector. Yet, capacity to access and carry out relevant research and development is uneven among States.

Part II of the BBNJ Agreement sets out a legal framework for activities with respect to marine genetic resources and digital sequence information on marine genetic resources of areas beyond national jurisdiction, including the fair and equitable sharing of benefits arising from such activities.

Key elements of the BBNJ Agreement in relation to marine genetic resources, including the fair and equitable sharing of benefits

Objectives

The BBNJ Agreement specifies four objectives of Part II, which include:

- The fair and equitable sharing of benefits arising from activities with respect to marine genetic resources and DSI on MGRs of ABNJ;
- The building and development of capacity of Parties, particularly developing States Parties, to carry out activities with respect to MGRs and DSI on MGRs of ABNJ;
- The generation of knowledge, scientific understanding and technology innovation, including through the development and conduct of marine scientific research; and
- The development and transfer of marine technology. (Article 9)

The BBNJ Agreement defines “marine genetic resources” as any material of marine plant, animal, microbial or other origin containing functional units of heredity of actual or potential value” (Article 1(8)).

This is the first internationally agreed definition of marine genetic resources. Notably, it is consistent with the CBD which define:

- Genetic resources as “genetic material of actual or potential value” and;
- Genetic material as “any material of plant, animal, microbial or other origin containing functional units of heredity”.

The BBNJ Agreement does not define “digital sequence information”. At the time of the conclusion of the BBNJ Agreement, work was ongoing under the Convention on Biological

Diversity on the issue of DSI. In decision 15/9, the 15th meeting of the Conference of the Parties to the CBD, recognizing the different understandings of the concept and scope of DSI on genetic resources and the range of views regarding the need to define such concept and scope, agreed on the continuing use of the term "digital sequence information" for further discussions.

Despite the absence of a definition, the importance of digital sequence information is well recognized. The BBNJ Agreement contains a paragraph in its preamble acknowledging that the generation of, access to and utilization of digital sequence information on MGRs of ABNJ, together with the fair and equitable sharing of benefits arising from its utilization, contribute to research and innovation, and to the general objectives of the Agreement.

The BBNJ Agreement indicates that "utilization of marine genetic resources" means to conduct research and development on the genetic and/or biochemical composition of marine genetic resources, including through the application of biotechnology (Article 1(14)). "Biotechnology" is defined as "any technological application that uses biological systems, living organisms, or derivatives thereof, to make or modify products or processes for specific use" (Article 1(3)).

Scope of application

Temporal scope

The provisions of the BBNJ Agreement apply to activities with respect to MGRs and DSI on MGRs of ABNJ collected and generated after the entry into force of the Agreement for the respective Party. The Agreement will also apply to the utilization of MGRs and DSI collected or generated before the entry into force by default, but a Party may opt-out of this default by making an exception in writing under article 70 of the Agreement on reservations and exceptions (Article 10(1))

Material scope

The provisions of the BBNJ Agreement apply to activities with respect to both MGRs of ABNJ, and with respect to DSI on MGRs of ABNJ. The application of the provisions of Part II, including the obligations in Part II, is, however, subject to two categories of "carve-outs".

First, the provisions of Part II do not apply to:

- Fishing regulated under relevant international law and fishing-related activities; or
- Fish or other living marine resources known to have been taken in fishing and fishing-related activities from ABNJ, except where such fish or other living marine resources are regulated as utilization under Part II. (Article 10(2))

Second, the obligations in Part II also do not apply to a Party's military activities, including military activities by government vessels and aircraft engaged in non-commercial services. The Agreement further clarifies, however, that the obligations in Part II with respect to utilization of MGRs and DSI on MGRs of ABNJ shall apply to a Party's non-military activities. (Article 10(3))

Activities with respect to marine genetic resources of areas beyond national jurisdiction and digital sequence information on such resources

General rules

The BBNJ Agreement sets out a suite of general rules governing activities with respect to MGRs and DSI on MGRs of ABNJ.

First, the Agreement clarifies that such activities may be carried out by all Parties, irrespective of their geographical location, and by natural or juridical persons under their jurisdiction (Article 11(1)). At the same time, Parties have an obligation to promote cooperation in all such activities (Article 11(2)).

Second, the Agreement requires that the collection in situ of MGRs of ABNJ shall be carried out with "due regard" for the rights and legitimate interests of coastal States in areas within their national jurisdiction, as well as for the interests of other States in ABNJ. To this end, Parties shall endeavour to cooperate, as appropriate, including through the Clearing-House Mechanism (Article 11(3)).

Under the Agreement, "collection in situ", in relation to MGRs, is defined as the collection or sampling of MGRs in ABNJ (Article 1(4)).

Third, the Agreement provides that no State shall claim or exercise sovereignty or sovereign rights over MGRs of ABNJ (Article 11(4)), and that collection in situ of MGRs of ABNJ shall not constitute the legal basis for any claim to any part of the marine environment or its resources (Article 11(5)).

Fourth, the Agreement affirms that such activities are in the interest of all States and for the benefit of all humanity, particularly for the benefit of advancing the scientific knowledge of humanity and promoting the conservation and sustainable use of marine biological diversity, taking into particular consideration the interests and needs of developing States (Article 11(6)).

Last but not least, the Agreement provides that such activities shall be carried out exclusively for peaceful purposes (Article 11(7)).

Notification

The BBNJ Agreement provides for a notification system on activities with respect to MGRs and DSI on MGRs of ABNJ. Under this system, Parties have the obligation to take the necessary legislative, administrative or policy measures to ensure that information is provided to the Clearing-House Mechanism at different stages of the collection and utilization of MGRs and DSI on MGRs of ABNJ. (Article 12(1))

Pre-collection stage: Certain information, as specified in the BBNJ Agreement, must be notified to the Clearing-House Mechanism six months or as early as possible before the collection or sampling of MGRs in ABNJ. This includes, among others, the nature and objectives of the collection, subject matter of the research, geographical areas of the collection, methods and means, timeframe, sponsoring institution(s), and opportunities for

international scientific collaboration, in particular with scientists from developing States, and a data management plan (Article 12(2)). Upon notification, the Clearing-House Mechanism will automatically generate a "BBNJ" standardized batch identifier (Article 12(3)). In case of a material change to the information provided in the pre-collection notification, updated information must also be notified to the Clearing-House Mechanism within a reasonable period, and, when practicable, no later than the start of collection in situ (Article 12(4)).

Post-collection stage: Parties have the obligation to ensure that certain information, together with the "BBNJ" standardized batch identifier, is notified to the Clearing-House Mechanism no later than one year from the collection or sampling of MGRs in ABNJ. Such information includes the repository or database where DSI is or will be deposited, where MGRs collected in situ are or will be deposited, a report detailing geographical area of collection and available findings, as well as necessary updates to the data management plan (Article 12(5)). Parties must ensure that MGR samples and DSI in repositories or databases under their jurisdiction can be identified as originating from ABNJ (Article 12(6)), and ensure that these repositories and databases prepare biennial aggregate reports on access to MGRs and DSI linked to their "BBNJ" standardized batch identifier, making them available to the Access and Benefit-Sharing Committee (Article 12(7)).

Utilization stage: Parties are also required to ensure that certain information relating to the utilization (including commercialization) of MGRs of ABNJ is notified to the Clearing-House Mechanism as soon as such information becomes available. This applies equally to the utilization of DSI on MGRs of ABNJ where practicable. The information to be notified to the Clearing-House Mechanism includes the "BBNJ" standardized batch identifier, where the utilization results could be found, details of post-collection notifications related to MGRs utilized, where the original sample utilized is held, modalities for access to MGRs and DSI utilized, and available information on sales of relevant products. (Article 12(8))

Traditional knowledge of Indigenous Peoples and local communities associated with marine genetic resources in areas beyond national jurisdiction

The BBNJ Agreement recognizes the role of traditional knowledge of Indigenous Peoples and local communities (IPLCs) associated with MGRs in ABNJ, and contains provisions in this respect, outlining three key elements:

- Such traditional knowledge shall only be accessed with the free, prior and informed consent or approval and involvement of IPLCs holding such knowledge. Parties are obliged to take legislative, administrative or policy measures to that end.
- The Clearing-House Mechanism may play a role in facilitating access to such traditional knowledge.
- Access and use of such traditional knowledge must occur on the basis of mutually agreed terms. (Article 13)

Fair and equitable sharing of benefits

The BBNJ Agreement establishes a framework for the fair and equitable sharing of benefits arising from activities with respect to MGRs and DSI on MGRs of ABNJ. Key elements of this framework are outlined below.

Mandatory benefit-sharing

The Agreement provides that benefits arising from activities with respect to MGRs and DSI on MGRs of ABNJ must be shared in a fair and equitable manner, as outlined in Part II of the Agreement, and contribute to the conservation and sustainable use of BBNJ (Article 14(1)). These benefits include both non-monetary and monetary benefits, for which the Agreement sets out respective modalities for benefit-sharing. Parties will have to take the necessary measures, as appropriate, to ensure that benefits resulting from relevant activities undertaken by natural or juridical persons under their jurisdiction are shared in accordance with the Agreement (Article 14(11)).

Modalities for the sharing of non-monetary benefits

Non-monetary benefits will be shared in various forms which include but not limited to access to samples and DSI, open access to scientific data, information contained in the notifications (along with "BBNJ" standardized batch identifiers), capacity-building and transfer of marine technology, as well as increased technical and scientific cooperation (Article 14(2)).

To this end, Parties have the obligation to take the necessary measures to ensure that MGRs and DSI on MGRs of ABNJ subject to utilization by natural or juridical persons under their jurisdiction are deposited in publicly accessible repositories and databases together with their "BBNJ" standardized batch identifiers. Such deposit must be done no later than three years from the start of utilization or as soon as the MGRs and DSI become available (Article 14(3)).

Access to MGRs and DSI deposited in repositories and databases under a Party's jurisdiction can be subject to reasonable conditions which include the need to preserve the physical integrity of MGRs, reasonable maintenance and access costs, and other reasonable conditions in line with the objectives of the Agreement. The Agreement also clarifies that opportunities may be provided to researchers and research institutions from developing States for them to access such MGRs and DSI on fair and most favourable terms, including on concessional and preferential terms. (Article 14(4))

Modalities for the sharing of monetary benefits

Monetary benefits from utilization (including commercialization) of MGRs and DSI on MGRs of ABNJ shall be shared:

- Fairly and equitably;
- Through the financial mechanism established under the Agreement (specially through a special fund noted below); and
- For the conservation and sustainable use of BBNJ. (Article 14(5))

Initial modality from the entry into force of the Agreement: The Agreement sets out an initial modality for monetary benefit-sharing from its entry into force until a decision by the Conference of the Parties (COP) to the Agreement on the modalities for the sharing of monetary benefits from the utilization of MGRs and DSI on MGRs of ABNJ. Under this initial modality, developed Parties are obligated to make annual contributions to a special fund, which is established as part of the financial mechanism of the Agreement to fund, among

others, capacity-building for developing States and to assist them to implement the Agreement. The rate of contribution for each developed Party is set at 50 per cent of its assessed contribution to the budget adopted by the COP. (Article 14(6)).

Modalities for sharing monetary benefits from utilization: The COP may decide on various modalities for sharing monetary benefits from utilization of MGRs or DSI on MGRs of ABNJ, such as milestone payments, payments linked to commercialization, tiered fees based on level of activities, and other forms decided by the COP, including by a three-fourths majority if consensus is not reached. Similarly to the initial modality, payments will be channelled through the special fund. (Article 14(7))

In relation to modalities for sharing monetary benefits from the use of DSI, the Agreement recognizes that such modalities should be mutually supportive of and adaptable to other access and benefit-sharing instruments (Article 14(9)).

Temporary extension of the application of the initial modality: Parties may declare a delay of up to four years for these modalities decided by the COP to take effect for them, during which they must continue the payments under the initial modality (Article 14(8)).

Biennial review of monetary benefits: The COP will conduct biennial review of the monetary benefits from the utilization of MGRs and DSI on MGRs of ABNJ, including considering annual contributions paid to the special fund under the initial modality. The first of such reviews will take place no later than five years after the entry into force of the Agreement. (Article 14(10))

Access and Benefit-Sharing Committee

The Agreement establishes an Access and Benefit-Sharing (ABS) Committee which will be composed of 15 members nominated by Parties and elected by the COP. Its terms of references and operation modalities will be determined by the COP (Article 15(2)).

Established as, among others, a means to establish benefit-sharing guidelines, provide transparency and ensure a fair and equitable benefit-sharing (Article 15(1), the ABS Committee is mandated to make recommendations to the COP on matters relating to MGRs, including benefit-sharing (Article 15(3) and (5)). Parties are required to provide relevant information to the ABS Committee, such as the measures they take, information on national focal points and other information required by the COP (Article 15(4)). The ABS Committee is also authorized to consult and facilitate information exchange with relevant IFBs on activities under its mandate (Article 15(5)).

Monitoring and transparency

The Agreement clarifies that the monitoring and transparency of activities with respect to MGRs and DSI on MGRs of ABNJ will be achieved through notification to the Clearing-House Mechanism, through the use of "BBNJ" standardized batch identifiers, and according to procedures adopted by the COP as recommended by the ABS Committee (Article 16(1)).

In addition, Parties are required to submit periodic reports on their implementation of provisions concerning these activities and benefit-sharing (Article 16(2)). The ABS committee will prepare a report based on such information which will be shared with Parties for their

comments. After considering this report and comments by Parties and the recommendation of the ABS Committee, the COP may establish appropriate guidelines for the implementation of monitoring and transparency, which must take into account national capabilities and circumstances of Parties. (Article 16(3)).

3.4 Measures such as area-based management tools, including marine protected areas

Introduction

An increasing number of international instruments recognize the important contribution of area-based management tools (ABMTs), including marine protected areas (MPAs), for the protection and preservation of the marine environment and the sustainable use of its resources, including in ABNJ. To this end, at the global level, the 2022 Kunming-Montreal Global Biodiversity Framework sets a target of effectively conserving and managing at least 30 per cent of terrestrial and inland water areas, and of marine and coastal areas and restoring at least 30 per cent of areas of degraded terrestrial, inland water, and coastal and marine ecosystems by 2030.

ABMTs can have a variety of management objectives, such as preservation of ecological or geomorphological processes, conservation and management of species, protection of cultural or historic sites, environmental monitoring and assessment and scientific research. ABMTs can be designed to achieve these objectives by managing the pressures of human activities that negatively impact or have the potential to negatively impact the ecosystem and resources of a geographically defined area. The degree of protection will vary depending on the specific conservation and management objectives adopted for any specific area. For example, some areas might be strictly protected, while in others multiple uses might be permitted under regulation.

Types of ABMTs
The types of ABMTs that are provided for under existing instruments include:

- Protected areas, including MPAs and specially protected areas: The primary goal of a protected area is to protect and conserve the biodiversity and productivity of that area, including ecological life support systems that can be achieved through different layers of protection, based on specific conservation and sustainable use objectives.
- Special areas and particularly sensitive sea areas: In the shipping context, area-based management measures to address the impacts of shipping activities, on sensitive marine environments, such as unique oceanographic conditions, critical habitats for marine resources and rare or fragile marine ecosystems, and vessel traffic characteristics, can be adopted by the International Maritime Organization.
- Spatial and temporal closures, including for vulnerable marine ecosystems: In the fisheries context, spatial and temporal closures and gear restrictions for specific areas to protect fish stocks and other vulnerable species are available management tools to protect fish stocks and other vulnerable species.
- Sanctuaries, reserves and migratory corridors: These tools provide essential safeguarding for specific marine species and habitats.

Additional ABMTs and approaches being developed by States and IGOs include areas of particular environmental interest, biosphere reserves, large marine ecosystems, marine spatial planning, and other effective area-based conservation measures.

BBNJ Agreement – main elements on area-based management tools, including marine protected areas

The BBNJ Agreement provides for the establishment and implementation of area-based management tools, including marine protected areas, in areas beyond national jurisdiction. The Agreement defines an "area-based management tool" as a tool, including a marine protected area, for a geographically defined area through which one or several sectors or activities are managed with the aim of achieving particular conservation and sustainable use objectives in accordance with the Agreement (Article 1(1)).

It further defines a "marine protected area" as a geographically defined marine area that is designated and managed to achieve specific long-term biological diversity conservation objectives and may allow, where appropriate, sustainable use provided it is consistent with the conservation objectives (Article 1(9)).

The relationship and differences between these definitions are important, as is the hierarchy of objectives in the definition of "marine protected area", which gives priority of consideration to the achievement of "specific long-term biological diversity conservation objectives" and secondary consideration to "sustainable use", with the proviso that sustainable use objectives must also be "consistent with" conservation objectives in the designation and management of MPAs in ABNJ.

Objectives
The BBNJ Agreement specifies that its objectives in relation to ABMTs in ABNJ are to: (i) conserve and sustainably use areas requiring protection; (ii) strengthen cooperation and coordination in the use of ABMTs, including MPAs; (iii) protect, preserve, restore and maintain biological diversity and ecosystems and strengthen resilience to stressors; (iv) support food security and other socioeconomic objectives; and € support developing States through capacity-building and the development and transfer of marine technology in developing, implementing, monitoring, managing and enforcing ABMTs, including MPAs (Article 17(a) to €).

Area of application
The Agreement clarifies that ABMTs established under the Agreement shall not include areas within national jurisdiction and, moreover, that establishment of ABMTs shall not be relied upon as a basis for asserting or denying claims to sovereignty or jurisdiction, including in respect of any related disputes. The Agreement provides that the COP shall not consider for decision proposals for the establishment of such ABMTs, including MPAs (Article 18).

Proposals
Parties to the Agreement will be able to submit proposals to the Secretariat for the establishment of ABMTs, including MPAs, in ABNJ (Article 19). In the development of proposals, Parties are required to collaborate and consult with relevant stakeholders,

including States, in particular adjacent coastal States and global, regional, subregional and sectoral bodies, as well as civil society, the scientific community, the private sector, and Indigenous Peoples and local communities (Article 19(1) and (2)).

The Agreement also sets out the key elements to be included in a proposal, including geographic or spatial description of the area, human activities in the area and their possible impact, the state of the marine environment and biological diversity in the identified area, conservation and sustainable use objectives to be applied, and a draft management plan (Article 19(4)).

Process for the establishment of ABMTs, including MPAs

Upon receipt of a proposal, the Secretariat will make it publicly available and transmit it to the Scientific and Technical Body (STB) for a preliminary review. The outcome of the review will also be made publicly available (Article 20). The proponent will re-transmit the proposal to the Secretariat, having taken into account the preliminary review. The Secretariat will then notify Parties and make the retransmitted proposal publicly available.

Consultations on the proposal will then take place, which will be open to all relevant stakeholders, including States and global, regional, subregional and sectoral bodies, as well as civil society, the scientific community, Indigenous Peoples and local communities. The consultations will be facilitated by the Secretariat (Article 21).

The proponent will revise the proposal, as appropriate, after having considered the contributions received during the consultation period. The revised proposal will then be submitted to the STB for assessment and recommendation to the COP.

On the basis of the final proposal and the draft management plan, and taking into account the contributions and scientific input received during the consultation process, the COP will take a decision on the establishment of ABMTs, including MPAs, and related measures. The COP may decide on measures compatible with those adopted by relevant IFBs, in cooperation and coordination with those IFBs. Where proposed measures are within the competences of other bodies, the COP may make recommendations to promote the adoption of relevant measures through those bodies (Article 22).

The Agreement stipulates that decisions and recommendations adopted by the COP on ABMTs shall not undermine the effectiveness of measures adopted in respect of areas within national jurisdiction and shall be made with due regard for the rights and duties of all States.

Additionally, where proposed measures would affect or could reasonably be expected to affect the superjacent water above the seabed and subsoil of submarine areas over which a coastal State exercises sovereign rights, such measures shall have due regard to those sovereign rights. Consultations will be undertaken to that end (Article 22(5)).

Relationship with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies

In taking decisions, the COP is required to respect the competences of, and not undermine relevant IFBs. In this connection, the COP shall make arrangements for regular consultations to enhance cooperation and coordination with and among relevant IFBs, including coordination with regard to related measures adopted under such instruments and frameworks and by such bodies (Article 22(3)).

To further international cooperation and coordination, the COP may also consider and decide to develop a mechanism regarding existing ABMTs, including MPAs, that have been adopted by relevant IFBs (Article 22(4)).

Procedures are also in place for changes to be made to ABMTs, including MPAs, established by the COP that subsequently fall within the national jurisdiction of coastal States or the competence of a new or existing IFB (Article 22(6) and (7)).

Opt-out

Parties may opt-out during the 120-day period before decisions by the COP on ABMTs, including MPAs, enter into force by making an objection based on the grounds provided for in the Agreement (Article 23(5)).

Following an objection, that Party is required to adopt alternative and equivalent measures and not to take actions that would undermine the effectiveness of the decision, except where such measures or actions are essential for the exercise of rights and duties in accordance with UNCLOS (Article 23(6)). Objecting Parties are also required to report to the COP (Article 23(7)). Such objections are deemed to be withdrawn unless renewed by the objecting Party every three years (Article 23(8) and (9)).

Emergency measures

The Agreement provides that the COP shall take decisions to adopt measures in ABNJ, to be applied on an emergency basis, when a natural phenomenon or human-caused disaster has caused, or is likely to cause, serious or irreversible harm to marine biological diversity in ABNJ to ensure that the serious or irreversible harm is not exacerbated (Article 24(1)). Such measures shall be considered necessary only if, following consultation with relevant IFBs, the serious or irreversible harm cannot be managed through the application of other articles of the Agreement or by a relevant IFB (Article 24(2)). The time limit for such measures is two years, unless terminated earlier by the COP.

Implementation

Parties are required to ensure that activities under their jurisdiction or control that take place in ABNJ are conducted consistently with decisions adopted by the COP on ABMTs, including MPAs (Article 25(1)).

In addition, Parties are required to promote the adoption of measures within relevant IFBs of which they are members to support the implementation of the decisions of the COP (Article 25(4)).

The Agreement also provides that Parties shall encourage non-Parties to adopt measures supporting the decisions of the COP on ABMTs, including MPAs (Article 25(5)).

Monitoring and review

Under the Agreement, Parties shall report to the COP on the implementation of ABMTs, including MPAs, established under the Agreement. Relevant IFBs are also invited to provide information to the COP on the implementation of measures to achieve the objectives of ABMTs, including MPAs, established by the COP (Article 26(1) and (2)).

The STB will monitor and periodically review ABMTs, including MPAs, established under the Agreement to assess their effectiveness, including related measures, and progress in achieving their objectives. The STB will also provide advice and recommendations to the COP

and the COP shall, as necessary, take decisions or recommendations on the amendment, extension or revocation of ABMTs, including MPAs, and any related measures (Article 26(3) to (5)).

3.5 Environmental Impact Assessments

Introduction

Environmental impact assessments (EIAs) are an important component of national legislation, and more recently, international agreements that seek to protect the environment. Many different national and international EIA processes exist, but they generally consist of a tool used to assess, as early as possible, the effects of a proposed/planned activity on the environment with the aim of avoiding or mitigating negative effects, by, for example, deciding not to proceed with the activity or imposing certain conditions on the conduct of the activity.

Definitions of Environmental Impact Assessment (EIA) and Strategic Environmental Assessment (SEA)

The BBNJ Agreement defines an environmental impact assessment (EIA) as "a process to identify and evaluate the potential impacts of an activity to inform decision-making" (Article 1(7)). This definition makes clear that the EIA process in the BBNJ Agreement does not itself produce a decision on whether an activity can proceed, but rather it informs the decision-maker. Diverse definitions for the term can also be found in the national legislation of many States.

Another type of environmental assessment that has been developed more recently is the Strategic Environmental Assessment (SEA). The BBNJ Agreement does not define SEAs, but it does state that they are to be conducted for "plans and programmes relating to activities", while EIAs are to be conducted for planned activities (Article 31(1)). The Protocol on Strategic Environmental Assessment (Kiev Protocol) to the Espoo Convention defines a strategic environmental assessment (SEA) as the: "Evaluation of the likely environmental, including health, effects, which comprises the determination of the scope of an environmental report and its preparation, the carrying out of public participation and consultations, and the taking into account of the environmental report and the results of the public participation and consultations in a plan or programme".

Therefore, EIAs can be thought of as applying to individual activities, such as a new construction project, while SEAs apply to plans and programmes relating to activities.

Objectives in the Agreement in relation to EIAs

The Agreement sets out a number of objectives in relation to EIAs, namely:

- Operationalize the provisions of UNCLOS on EIAs for areas beyond national jurisdiction (ABNJ) by establishing processes, thresholds and other requirements for conducting and reporting assessments;
- Achieve a coherent EIA framework for activities in ABNJ;
- Ensure that relevant activities are assessed to prevent, mitigate and manage significant adverse impacts for the purpose of protecting and preserving the marine environment;
- Provide for SEAs;

- Build and strengthen the capacity of Parties, particularly developing States Parties, to prepare, conduct and evaluate EIAs and SEAs in support of the objectives of the Agreement; and
- Support the consideration of cumulative impacts and impacts in areas within national jurisdiction.

Obligation to conduct an EIA
The Agreement requires that Parties ensure that the potential impacts on the marine environment of planned activities under their jurisdiction or control that take place in ABNJ are assessed before they are authorized (Article 28). This is already an obligation under UNCLOS but the Agreement further elaborates on this obligation in a number of ways. It also requires that when a Party determines that an activity to be conducted in marine areas within national jurisdiction may cause substantial pollution of or significant and harmful changes to the marine environment in ABNJ, that Party shall ensure that an EIA is conducted in accordance with the Agreement or the Party's national process (Article 28(2)). Furthermore, a Party conducting such an EIA under its national process, must provide information during the process as well as EIA and monitoring reports to the Clearing-House Mechanism (Article 28(2)).

Thresholds and factors for conducting EIAs
Parties to the Agreement are required to conduct a screening of a planned activity under their jurisdiction or control that takes place in areas beyond national jurisdiction when that activity may have more than a minor or transitory effect on the marine environment, or when the effects of the activity are unknown or poorly understood (Article 30(1)). If, based on this screening, the Party has reasonable grounds for believing that the activity may cause substantial pollution of or significant and harmful changes to the marine environment an EIA shall be conducted in accordance with the Agreement (Article 30(1)(b)). The Agreement requires that cumulative impacts (Article 30(1)(a)(ii)) and a list of non-exhaustive factors listed in it (Article 30(2)) be considered when determining if this threshold is met.

Relationship to EIA processes under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies
The Agreement requires that Parties promote the use of EIAs and the adoption and implementation of the standards and/or guidelines developed by the Scientific and Technical Body in relevant IFBs of which they are members (Article 29(1)). Furthermore, the COP shall develop a mechanism for the Scientific and Technical Body to collaborate with IFBs (Article 29(2)).

It is not necessary to conduct a screening or an EIA under the Agreement if a Party determines that the planned activity has been assessed in accordance with other relevant IFBs; and that the assessment already undertaken is equivalent to the one required under the Agreement, or the regulations or standards of the relevant IFBs arising from the assessment were designed to prevent, mitigate or manage potential impacts below the threshold for EIAs under the Agreement (Article 29(4)).

Process for EIAs

The Agreement requires that Parties ensure that the process for conducting an EIA includes the following steps: screening (Article 31(1)(a)); scoping (Article 31(1)(b)); impact assessment and evaluation (Article 31(1)(c)); and prevention, mitigation and management of potential adverse effects (Article 31(1)(d)).

- **Screening:** Parties are required to undertake screening to determine whether an EIA is required in respect of a planned activity under its jurisdiction or control.
- **Scoping:** Parties are required to ensure that key environmental and any associated impacts, as well as alternatives to the planned activity are identified.
- **Impact assessment and evaluation:** Parties are required to ensure that the impacts of planned activities, including cumulative impacts and impacts in areas within national jurisdiction, are assessed and evaluated.
- **Prevention, mitigation and management of potential adverse effects**: Parties are required to ensure that measures to prevent, mitigate and manage potential adverse effects of the planned activities under their jurisdiction or control are identified and analysed to avoid significant adverse impacts.

Parties may conduct joint EIAs (Article 31(2)) and a roster of experts will be created under the Scientific and Technical Body so Parties with capacity constraints may request advice and assistance from these experts to conduct and evaluate screenings and EIAs (Article 31(3)).

Decision-making

The decision on whether to conduct an EIA for a planned activity is also taken by the Party under whose jurisdiction or control the activity falls (Article 31(1)(a)). If a Party determines after a screening that an EIA is not required, under a so-called "call-in mechanism", other Parties may register their views on the potential impacts of the planned activity with the Party that made the determination and the STB (Article 31(1)(a)(ii)). The STB may in turn make recommendations to the Party that took the decision, which that Party must consider (Article 31(1)(a)(iv)).

The decision on whether planned activities are allowed to proceed following an EIA, is also to be taken by the Party (State or regional economic integration organization (REIO)) under whose jurisdiction or control the activity falls (Article 38(1)). Here again the Agreement provides for a "call-in mechanism" to allow other Parties to register their concerns in relation to an authorized activity with the Party that authorized it, and with the STB, which may in turn may make recommendations that must be considered by the Party that authorized the activity (Article 37(4)).

Public notification and consultation

Parties area required to ensure timely public notification of a planned activity, including by publication through the Clearing-House Mechanism and through the Secretariat, and planned and effective time-bound opportunities, as far as practicable, for participation by all States, in particular adjacent coastal States and any other States adjacent to the activity when they are potentially most affected States, and stakeholders in the EIA process (Article 32(1)). Potentially most affected States include coastal States whose exercise of sovereign rights for the purpose of exploring, exploiting, conserving or managing natural resources may reasonably be believed to be affected by the activity and States that carry out, in the area of the planned activity, human activities, including economic activities, that may reasonably be believed to be affected (Article 32(2)). The stakeholders in this process include

Indigenous Peoples and local communities with relevant traditional knowledge, IFBs, civil society, the scientific community and the public (Article 32(3)). Substantive comments received during the consultation process, shall be considered and responded to or addressed by the Party under whose jurisdiction or control the planned activity falls (Article 32(5)). Special provisions apply where a planned activity affects areas of the high seas that are entirely surrounded by the exclusive economic zones of States (Article 32(6)).

Environmental impact assessment reports

The Agreement requires that Parties ensure the preparation of an EIA report for any EIA undertaken under the Agreement (Article 33(1)), and lists the minimum information that must be included in such an EIA report.

The EIA report shall include, at a minimum, the following information (Article 33(2)):

- a description of the planned activity, including its location;
- a description of the results of the scoping exercise;
- a baseline assessment of the marine environment likely to be affected;
- a description of potential impacts, including potential cumulative impacts and any impacts in areas within national jurisdiction;
- a description of potential prevention, mitigation and management measures;
- a description of uncertainties and gaps in knowledge;
- information on the public consultation process;
- a description of the consideration of reasonable alternatives to the planned activity; a description of follow-up actions, including an environmental management plan;
- and a non-technical summary.

The Party shall make the draft EIA report available through the Clearing-House Mechanism during the public consultation process, to provide an opportunity for the Scientific and Technical Body to consider and evaluate the report (Article 33(3)). The STB may make comments to the Party on the draft environmental impact assessment report, which the Party shall give consideration to (Article 33(4)).

Monitoring, reporting and review

The Agreement sets out a mechanism for ensuring monitoring, reporting and review.

- **Monitoring:** Parties are required to keep under surveillance the impacts of any activities in areas beyond national jurisdiction that they permit or in which they engage (Article 35).
- **Reporting:** Parties are required to periodically report on the impacts of the authorized activity and the results of the monitoring (Article 36). Monitoring reports shall be made public, including through the Clearing-House Mechanism, and the Scientific and Technical Body may consider and evaluate the monitoring reports (Article 36(2)).
- **Review:** Parties are required to ensure that the impacts of the authorized activity monitored are reviewed (Article 37). On the basis of the reports received, the STB may notify the Party that authorized the activity if it considers that the activity may have significant adverse impacts that were either not foreseen in the EIA or that arise from a breach of any conditions of approval of the authorized activity and, as appropriate, may make recommendations to the Party (Article 37(3)).

Standards and/or guidelines related to environmental impact assessments
The Agreement provides that the STB shall develop standards or guidelines for consideration and adoption by the COP on a number of aspects related to EIAs (Article 38).

Strategic environmental assessments (SEAs)
The Agreement calls on Parties to, individually or in cooperation with other Parties, consider conducting SEAs for plans and programmes relating to activities under their jurisdiction or control, to be conducted in ABNJ, in order to assess the potential effects of such plans or programmes, as well as of alternatives, on the marine environment (Article 39(1)). Furthermore, the COP may conduct an SEA of an area or region to collate and synthesize the best available information about the area or region, assess current and potential future impacts and identify data gaps and research priorities (Article 39(2)).

3.6 Capacity-building and the transfer of marine technology

Introduction

During the negotiation of the Agreement, capacity-building and the transfer of marine technology (CB&TMT) were recognized as cross-cutting issues, essential to enabling all to participate in achieving the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction. As a result, references to these aspects permeate the Agreement. General obligations as well as modalities regarding CB&TMT, types of CB&TMT and monitoring and review of CB&TMT are set out in Part V and Annex II.

Scope of CB&TMT
While neither "capacity-building" nor "marine technology" are defined by UNCLOS, the BBNJ Agreement provides a definition of "marine technology" in its use of terms (Article 1(10)). This definition takes inspiration from the IOC Criteria and Guidelines on the Transfer of Marine Technology (see Section 2.5), with the addition of the terms "inter alia" and "related biotechnology". The BBNJ Agreement does not define the term "capacity-building", but an indicative and non-exhaustive list of types of capacity-building and of the transfer of marine technology can be found Article 44(1), which is further elaborated in Annex II to the Agreement.

BBNJ Agreement – main elements regarding capacity-building and the transfer of marine technology

Objectives

The objectives of Part V are to assist Parties, in particular developing States Parties, in implementing the Agreement, to enable inclusive, equitable and effective cooperation and participation in activities undertaken under the Agreement; to develop the marine scientific and technological capacity of Parties; and to increase, disseminate and share relevant knowledge (Article 40).

More specifically, Part V aims to support developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing

middle-income countries, through CB&TMT under the Agreement, in achieving the objectives relating to MGRs, ABMTs and EIAs.

Cooperation

The Parties are required to cooperate, directly or through relevant IFBs, to assist Parties, in particular developing States Parties, in achieving the objectives of the Agreement through CB&TMT.

In this respect, the Parties are to cooperate at all levels and in all forms, including through partnerships and with the involvement of all relevant stakeholders, as well as through strengthening cooperation and coordination between relevant IFBs.

This entails a commitment to give full recognition to the special requirements of developing States Parties, and to ensure that the provision of CB&TMT is not conditional on meeting onerous reporting requirements (Article 41).

Modalities

Within their capabilities, the Parties are under an obligation to ensure capacity-building for developing States Parties and to cooperate to achieve the transfer of marine technology to them, where needed and requested (Article 42). The Parties must also provide resources to support CB&TMT and facilitate access to other sources of support.

Under the Agreement, CB&TMT are envisaged as country-driven, transparent, effective and iterative processes that are participatory, cross-cutting, and gender-responsive. CB&TMT are intended to build upon, rather than duplicate, existing programmes, guided by lessons learned, and maximizing efficiency and results. CB&TMT are further to be based on and responsive to the needs and priorities of developing States Parties, whether self-assessed or facilitated through the CB&TMT Committee and the Clearing-House Mechanism (see Section 3.7).The transfer of marine technology is to take place on fair and most favourable terms, including on concessional and preferential terms, and in accordance with mutually agreed terms and conditions as well as the objectives of the Agreement.

Parties must further promote and encourage economic and legal conditions for the transfer of marine technology to developing States Parties, which may include providing incentives to enterprises and institutions. Conversely, the transfer of marine technology must take into account rights over such technologies and be carried out with due regard for legitimate interests, including rights and duties of holders, suppliers and recipients, and take into consideration interests and needs of developing States. The relevant technology shall be appropriate, relevant and, to the extent possible, reliable, affordable, up to date, environmentally sound and in an accessible form (Article 43).

Types of CB&TMT

Article 44 of the Agreement sets out an indicative and non-exhaustive list of types of CB&TMT, which includes support for the creation or enhancement of the human, financial management, scientific, technological, organizational, institutional and other resource capabilities of Parties.

This list includes, for example, the sharing and use of data and information, awareness-raising, as well as the development and strengthening of infrastructure, institutional capacity, national regulatory frameworks, expertise, guidelines, programmes, and tools for the monitoring, control and surveillance of activities.

The list is further elaborated in Annex II of the Agreement, which is subject to periodic review by the COP, to account for the evolution of technology, innovation and needs.

Monitoring and review by the CB&TMT Committee
CB&TMT under the Agreement are subject to periodic monitoring and review, carried out by a CB&TMT Committee under the authority of the COP (Article 45).

The CB&TMT Committee consists of members possessing appropriate qualifications and expertise that serve objectively in the best interest of the Agreement (Article 46). Members are nominated by Parties and elected by the COP, taking into account gender balance and equitable geographical distribution and providing for representation from least developed countries, small island developing States and landlocked developing countries. The terms of reference and modalities for the operation of the Committee are decided by the COP.

The CB&TMT Committee is to review the needs and priorities of developing States Parties and the support required, provided and mobilized, as well as gaps in meeting assessed needs. It is also tasked with identifying and mobilizing funds under the financial mechanism established by the Agreement, including for the conduct of needs assessments. The Committee is further mandated to measure performance on the basis of agreed indicators and review results-based analyses, including on the output, outcomes, progress and effectiveness of CB&TMT, as well as successes and challenges. It may make recommendations for follow-up activities.

The Parties must submit reports to the CB&TMT Committee, which are to take into account inputs from regional and subregional bodies and are made publicly available. The COP determines the intervals and formats of these reports and ensures that reporting requirements are streamlined and not onerous. The CB&TMT Committee submits reports and recommendations to the COP.

3.7 Cross-cutting issues

What are cross-cutting issues?

“Cross-cutting” issues address **general, procedural and institutional matters** that relate to several substantive provisions of the BBNJ Agreement or that are relevant to the Agreement as a whole.

Given their overarching nature, cross-cutting issues can have a significant effect on the substantive interpretation and application of the Agreement.

The cross-cutting issues cover:

(1) The preamble
(2) General provisions;
(3) Institutional arrangements;
(4) Financial resources and mechanism;
(5) Implementation and Compliance;
(6) Settlement of disputes;
(7) Non-parties to the Agreement;
(8) Good faith and abuse of rights; and
(9) Final provisions.;.

Preamble

The general purpose of a preamble is to articulate the purposes and considerations that led States to conclude a treaty. It can serve as a tool for understanding the context and rationale of the drafters. The preamble of the BBNJ Agreement contains a number of statements and understandings considered important for delegations who negotiated the Agreement.

General provisions

Along with the preamble, general provisions set the context for the substantive elements of the Agreement and bind them together into a coherent normative framework. They address:

- Definitions of the terms used in the Agreement;
- The objective of the Agreement and its scope of application;
- Exceptions to the applicability of the Agreement;
- Its relationship with UNCLOS and other relevant IFBs;
- General principles and approaches; and
- International cooperation.

Objective

The objective of the Agreement is to ensure the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, for the present and in the long term, through effective implementation of the relevant provisions of UNCLOS and further international cooperation and coordination (Article 2).

Scope of application

The Agreement applies to areas beyond national jurisdiction, namely the high seas and the Area (Article 3).

Exceptions

The BBNJ Agreement does not apply to:

- Any warship, military aircraft or naval auxiliary;
- Other vessels or aircraft owned or operated by a Party and used, for the time being, only on government non-commercial service (except for Part II) (Article 4).

Relationship with UNCLOS and other relevant instruments, frameworks or bodies

As an implementing Agreement to UNCLOS, the BBNJ Agreement must be interpreted and applied in the context of and in a manner consistent with UNCLOS (Article 5(1)).
Likewise, it must be interpreted and applied in a manner that does not undermine relevant IFBs and that promotes coherence and coordination with those IFBs (Article 5(2)).

Finally, the legal status of non-parties to UNCLOS is not affected by the Agreement (Article 5(3)).

General principles and approaches

The BBNJ Agreement includes a list of fourteen general principles and approaches, which shall guide Parties in their interpretation and application of the Agreement, with a view to achieving its objectives (Article 7).

International cooperation
Parties are required to cooperate under the Agreement, including through strengthening and enhancing cooperation with and among relevant IFBs (Article 8(1)). They must also endeavour to promote the objectives of the Agreement when participating in decision-making under other relevant IFBs (Article 8(2)).

Institutional arrangements

The Agreement establishes a number of bodies to review and assist in its implementation, including a Conference of the Parties and several subsidiary bodies. It also establishes a Secretariat and a Clearing-House Mechanism.

Conference of the Parties

The COP is established as the decision-making body under the Agreement. Its functions include to:

- Keep under review and evaluation the implementation of the Agreement and, for this purpose, to:
- Adopt decisions and recommendations;
- Promote cooperation and coordination with and among relevant IFBs;
- Establish subsidiary bodies;
- Adopt a budget;
- Promote transparency in decision-making processes and other activities carried out under the Agreement (Article 47(6)); and
- Request advisory opinions from the International Tribunal for the Law of the Sea (Article 47(7)).

The first meeting of the COP shall be convened by the Secretary-General of the United Nations no later than one year after the entry into force of the Agreement. Thereafter, the COP will meet at regular intervals to be determined by the Conference itself (Article 47(2)).

Subsidiary bodies

These include:

- The **Scientific and Technical Body** (see also sections 3.4 and 3.5). Its mandate includes to:
    - Provide scientific and technical advice to the COP;
    - Perform other functions assigned to it by the Agreement or determined by the COP; and
    - Report to the COP on its work (Article 49(4)).
- The **Access and Benefit-sharing Committee** (see also section 3.3). It will serve as a means for establishing guidelines for benefit-sharing, providing transparency and ensuring a fair and equitable sharing of both monetary and non-monetary benefits resulting from activities in ABNJ (Article 15(1)). It may also make recommendations to the COP on matters relating to the implementation of Part II of the Agreement on marine genetic resources (Article 15(3)).
- The **Capacity-building and Transfer of Marine Technology Committee** (see also section 3.6). Its functions include to:
    - Facilitate needs assessments on CB&TMT (Article 42(4));
    - Conduct, under the authority of the COP, the monitoring and review of CB&TMT undertaken under the Agreement (Article 45(3));

    - Submit recommendations, including on types of CB&TMT (Articles 44(3) and 46(3)); and
    - Regularly report to the COP (Article 46(3)).
- The **Finance Committee**. It will periodically report and make recommendations on the identification and mobilization of funds under the financial mechanism established by the Agreement. It may also perform other functions assigned to it by the Agreement or determined by the COP (Article 52(14)).
- The **Implementation and Compliance Committee**. It will be facilitative in nature and function in a manner that is transparent, non-adversarial and non-punitive (Article 55(1)). Its functions include to:
    - Consider issues of implementation and compliance at the individual and systemic levels;
    - Report periodically; and
    - Make recommendations to the COP (Article 55(3)).

Secretariat

The Secretariat will:

- Provide administrative and logistical support to the COP and its subsidiary bodies;
- Facilitate cooperation and coordination with the secretariats of other relevant IFBs;
- Manage the Clearing-House Mechanism;
- Provide assistance with the implementation of the Agreement;
- Perform other functions, as may be determined by the COP or assigned to it under the Agreement (Article 50(4)).

Arrangements for the functioning of the Secretariat, including the decision on its seat, will be made at the first meeting of the COP (Article 50(1)). In the interim period, until the Secretariat to be established under the Agreement commences its functions, the Secretary-General of the United Nations, through DOALOS, performs the secretariat functions thereunder (Article 50(2)).

Clearing-House Mechanism

A Clearing-House Mechanism is also established (Article 51(1)). It will serve as an open-access, centralized platform to enable Parties to access, provide and disseminate information with respect to activities taking place pursuant to the provisions on ABMT, including MPAs, MGRs and EIAs (Article 51(2) and (3)(a)).

It will also facilitate the matching of capacity-building needs with the support available and with providers for the transfer of marine technology, and facilitate access to related know-how and expertise (Article 51(3)(b)).

In the management of the Clearing-House Mechanism, full recognition shall be given to the special requirements of developing States Parties, as well as the special circumstances of small island developing States Parties (Article 51(5)).

Financial resources and mechanism

Funding arrangements are key to ensuring that institutions established under the Agreement have the necessary resources to function and to ensuring that Parties to the Agreement can be assisted in its implementation and participate in activities thereunder.

The institutions established by the BBNJ Agreement will be funded through assessed contributions of the Parties (Article 52(2)).

The Agreement also provides for the establishment of a financial mechanism to assist developing States Parties in its implementation, including through funding in support of CB&TMT, and perform other functions related to the conservation and sustainable use of marine biological diversity (Article 52(3)). The financial mechanism will consist of:

- A voluntary trust fund to facilitate the participation of representatives of developing States Parties in the meetings of the bodies established under the Agreement (Article 52(4)(a));
- A special fund (Article 52(4)(b)); and
- The Global Environment Facility trust fund (Article 52(4)(c)).

The special fund and the Global Environment Facility trust fund will be utilized, among others, to fund capacity-building projects under the Agreement and support conservation and sustainable use programmes by Indigenous Peoples and local communities as holders of traditional knowledge (Article 52(6)).

Additionally, in recognition of the urgency to address the conservation and sustainable use of marine biological diversity of ABNJ, the COP shall determine an initial resource mobilization goal through 2030 for the special fund from all sources (Article 52(11)).

Implementation and Compliance

Parties are required to take the necessary legislative, administrative or policy measures, as appropriate, to ensure the implementation of the Agreement (Article 53). They must also monitor the implementation of their obligations and report on measures taken in this respect to the COP (Article 54).

In addition, the Implementation and Compliance Committee established under the Agreement is assigned the task to facilitate and consider the implementation of and promote compliance with its provisions (Article 55(1)).

Settlement of disputes

Parties must settle their disputes by peaceful means of their choice (Article 57).

Disputes of a technical nature may be referred by the Parties concerned to an ad hoc expert panel which will endeavour to resolve the dispute expeditiously without recourse to binding procedures (Article 59).

Disputes concerning the interpretation or application of the Agreement must be settled in accordance with the provisions for the settlement of disputes provided for in Part XV of UNCLOS (Article 60(1)). Taking into account that the Agreement is open to States or regional economic integration organizations that are not parties to UNCLOS, two different scenarios are envisaged in the Agreement:

- First, for those that are already parties to UNCLOS:
  The procedures they have accepted pursuant to Article 287 of UNCLOS will apply for the settlement of disputes under the Agreement unless they accept another procedure (Article 60(4)); and
- Second, for those that are not Parties to UNCLOS:
  They will be free to choose, by means of a written declaration to the depositary one or more of the procedures set out in Article 287 of UNCLOS (Article 60(5)). In the

absence of such declaration, they will be deemed to have accepted Annex VII arbitral tribunal as their choice of procedure (Article 60(6)).

Other cross-cutting provisions

Other cross-cutting provisions include:

- Non-parties to the Agreement. Parties must encourage non-parties to the Agreement to become Parties thereto and to adopt laws and regulations consistent with its provisions (Article 62).
- Good faith and abuse of rights. Parties must fulfil in good faith the obligations assumed under the Agreement and exercise the rights recognized therein in a manner that would not constitute an abuse of right (Article 63); and
- Final provisions, including concerning signature (Article 65); ratification, approval, acceptance or accession (Article 66); entry into force (Article 68); provisional application (Article 69); reservations and exceptions (Article 70); amendments (Article 72); denunciation (Article 73);designation of the depositary (Article 75); authentic texts (Article 76); and other matters. Pursuant to its final provisions:
    - The BBNJ Agreement will enter into force 120 days after the date of deposit of the sixtieth instrument of ratification, approval, acceptance or accession (Article 68(1)).
    - Pending entry into force, it may be provisionally applied by any State or REIO that consents to such provisional application through notification to the depositary, namely the Secretary-General of the United Nations (Article 69(1)).
    - No reservations or exceptions may be made to the Agreement unless expressly permitted by its provisions (Article 70).
    - Other declarations or statements are permitted, provided that they do not purport to exclude or modify the legal effects of the provisions of the Agreement in their application to the declaring Party (Article 71).
    - Parties may propose amendments to the Agreement, which will be considered by the COP (Article 72(1)).
    - A Party may denounce the Agreement by written notification to the depositary, without the need to indicate its reasons (Article 73(1)).

3.8 Recap

Marine genetic resources, including the fair and equitable sharing of benefits

What?

- ”Marine genetic resources” is defined under the BBNJ Agreement as any material of marine plant, animal, microbial or other origin containing functional units of heredity of actual or potential value. This is the first internationally agreed definition of marine genetic resources.
- “Digital sequence information” is not defined in the BBNJ Agreement. At the time of the conclusion of the BBNJ Agreement, work was ongoing under the Convention on Biological Diversity on the issue of digital sequence information.

Legal framework for MGRs, including fair and equitable benefit-sharing under the BBNJ Agreement

- There are specific objectives of Part II of the Agreement on MGRs, including the fair and equitable sharing of benefits.
- The Agreement specifies the temporal and material scope of application of its provisions on MGRs. Notably, the provisions of Part II do not apply to fishing regulated under relevant international law and fishing-related activities, or fish or other living marine resources known to have been taken in these activities from ABNJ, except where they are regulated as utilization under Part II.
- The Agreement sets out general rules governing activities with respect to MGRs and DSI on MGRs of ABNJ. It also provides for a notification system on such activities.
- The Agreement addresses the access and use of traditional knowledge of Indigenous Peoples and local communities associated with MGRs in ABNJ.
- The Agreement provides for the fair and equitable sharing of both monetary and non-monetary benefits arising from activities with respect to MGRs and DSI on MGRs of ABNJ:
    - Non-monetary benefits are to be shared in the form of access to samples, DSI and scientific data, information contained in notifications, capacity-building and transfer of marine technology, as well as increased technical and scientific cooperation;
    - Monetary benefits will be shared through payments to a special fund, including annual contributions by developed Parties of additional 50 per cent of their assessed contribution to the budget adopted by the COP until a COP decision on the modalities for sharing monetary benefits from the utilization of MGRs and DSI on MGRs of ABNJ.
- An Access and Benefit-Sharing Committee is established as, among others, a means to establish benefit-sharing guidelines, provide transparency and ensure a fair and equitable benefit-sharing.
- The Agreement also contains provisions on the monitoring and transparency of activities with respect to MGRs and DSI on MGRs of ABNJ, including an obligation of Parties to submit periodic reports on their implementation of provisions concerning these activities and benefit-sharing.

Main elements

- Objectives of Part II of the Agreement
- Scope of application of provisions with respect to MGRs
- General rules on activities with respect to MGRs and DSI on MGRs of ABNJ, and a notification system on such activities

- Traditional knowledge of Indigenous Peoples and local communities associated with MGRs in ABNJ
- Fair and equitable sharing of both monetary and non-monetary benefits arising from activities with respect to MGRs and DSI on MGRs of ABNJ
- An Access and Benefit-Sharing Committee
- Monitoring and transparency

Measures such as area-based management tools, including marine protected areas

What?

- Tools for the protection and preservation of the marine environment and the sustainable use of its resources. AMBTs and MPAs are specifically defined under the Agreement.

Legal framework for ABMTs under the BBNJ Agreement

- There are specific objectives for Part III of the Agreement on ABMTs, including MPAs.
- The area of application is ABNJ. ABMTs, including MPAs, shall not include any areas within national jurisdiction.
- Part III of the Agreement sets out the process for the establishment of ABMTs, including regarding the development of proposals, consultations with relevant stakeholders, review by the STB and decisions and recommendations by the COP.
- The Agreement also sets out the relationship between the COP and IFBs, including by stipulating that, in taking decisions, the COP shall respect the competences of, and not undermine IFBs, and shall make arrangements for consultations to enhance cooperation and coordination.
- There are also provisions on the implementation, monitoring and review of ABMTs, including procedures for measures to be amended, extended or revoked by the COP.

Main elements

- Objectives;
- Area of application
- Proposals, including publicity, preliminary review; consultations and assessments;
- Establishment of ABMTs, including MPAs
- Decision-making
- Emergency measures
- Objections
- Implementation
- Monitoring and review

Issue 3 - Environmental Impact Assessments

What?

- The BBNJ Agreement defines Environmental impact assessments as “a process to identify and evaluate the potential impacts of an activity to inform decision-making”. This definition makes clear that the EIA process in the BBNJ Agreement does not itself produce a decision on whether an activity can proceed, but rather it informs the decision-maker.
- Another type of environmental assessment addressed in the BBNJ Agreement is the Strategic Environmental Assessment . The Agreement does not define SEAs, but it

does state that they are to be conducted for "plans and programmes relating to activities", while EIAs are to be conducted for planned activities.

Legal framework for EIA

- The objectives in relation to EIAs include to operationalize the provisions of UNCLOS on EIAs for ABNJ by establishing processes, thresholds and other requirements for conducting and reporting assessments;
- The Agreement requires that Parties ensure that the potential impacts on the marine environment of planned activities under their jurisdiction or control that take place in ABNJ are assessed before they are authorized This is already an obligation under UNCLOS but the Agreement further elaborates on this obligation in a number of ways.
- Under the BBNJ Agreement it is not necessary to conduct a screening or an EIA under the Agreement if a Party determines that the planned activity has been assessed in accordance with other relevant IFBs and other requirements set out in the Agreement are met;
- The process for conducting an EIA includes the following steps: screening; scoping; impact assessment and evaluation; and prevention, mitigation and management of potential adverse effects.
- The decision on whether to conduct an EIA for a planned activity under the Agreement is taken by the Party under whose jurisdiction or control the activity falls, however, the Agreement also provides a so-called 'call-in mechanism" for other Parties to register their views on the potential impacts of the planned activity with the Party that made the determination and the STB;
- The Agreement establishes several notification and consultation requirements and lists the minimum information that must be included in EIA reports.
- It also establishes a mechanism for ensuring monitoring, reporting and review of the authorized activities.

Main elements

- The objectives of the Agreement in respect of EIAs;
- The obligation to conduct an EIA; the relationship to the EIA processes under other IFBs;
- The process for conducting an EIA;
- Decision-making in respect of EIAs;
- Public notification and consultation; EIA reports;
- Monitoring, reporting and review;
- Sandards and/or guidelines to be developed on the conduct of EIAs; and
- SEAs.

Issue 4 - Capacity building and the transfer of marine technology

What?

- The BBNJ Agreement includes a definition of "marine technology", based upon the Criteria and Guidelines on the Transfer of Marine Technology of the Intergovernmental Oceanographic Commission.
- Article 1 of the BBNJ Agreement sets out an illustrative enumeration of "marine technology", and Article 44 and Annex II an indicative list of types of CB&TMT.

- CB&TMT plays a key role in realizing the goals of the BBNJ Agreement in relation to MGRs, ABMTs and EIAs.

Legal Framework for CB&TMT

- Part V of the Agreement comprises provisions on objectives, cooperation and modalities, as well as a system for monitoring and review.
- It establishes a designated CB&TMT Committee that submits reports and recommendations to the COP.
- Part V also illustrates types of CB&TMT, which are further elaborated in Annex II.

Main elements

- Objectives;
- Cooperation;
- Modalities;
- Types of CB&TMT;
- Monitoring and review; and
- CB&TMT Committee.

Issue 5 - Cross-cutting issues

What?

- "Cross-cutting" issues address general, procedural and institutional matters that relate to several substantive provisions of the BBNJ Agreement or that are relevant to the Agreement as a whole. As such, they are key for its interpretation and implementation.
- General provisions**,** along with the preamble, set the context for the substantive elements of the Agreement and bind them together into a coherent normative framework.
- Institutional arrangements established under the Agreement include a Conference of the Parties as the governing body of the Agreement and several subsidiary bodies, as well as a Secretariat and a Clearing-House Mechanism.
- Other cross-cutting provisions contained in the Agreement govern various, mainly procedural, aspects that may arise before or after its entry into force.

Provisions of the Agreement of a cross-cutting nature

- Preamble;
- Use of terms;
- General objective;
- Scope of application;
- Exceptions
- Relationship with UNCLOS and relevant IFBs;
- Without prejudice
- General principles and approaches;
- International cooperation;
- Institutional arrangements;
- Financial resources and mechanisms;
- Implementation and compliance;
- Settlement of disputes;
- Non-parties to the Agreement;
- Good faith and abuse of rights;
- Final provisions.